

**Disclosure of Information is subject to exemptions
under Section 8(i)(j) and Section 10(i) of the RTI Act,
2005.**

CONFIDENTIAL

No. 4/3/2013 – IR
Government of India
Ministry of Personnel, Public Grievance and Pensions
(Department of Personnel and Training)

A meeting of the Search Committee for preparing panels for the posts of information Commissioners in Central Information Commission was held on 19th August, 2013 at 10.30 hours in the Cabinet Secretariat.

2. The draft minutes of the meeting are enclosed for approval.

(Dr. S. K. Sarkar)
Secretary (P)

07/

Cabinet Secretary

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Minutes of the meeting of the Search Committee for preparing panels for the posts of Information Commissioners in Central Information Commission held on 19th August, 2013 at 10.30 am

A meeting of the Search Committee under the Chairmanship of Cabinet Secretary took place on 19th August, 2013 to prepare a panel of 2-3 names for each post of Information Commissioners to be filled up in the CIC for consideration of Selection Committee chaired by Hon'ble Prime Minister.

The meeting was attended by Shri Pulok Chatterji, Principal Secretary to Prime Minister, Dr. S. K. Sarkar, Secretary (P) and Ms. Amrita Patel, Chairman, NDDB. Dr. B. A. Agrawal, Law Secretary, recused himself as he was one of the applicants. Secretary, Higher Education did not attend the meeting.

Secretary (P) informed the Committee that Hon'ble Prime Minister had approved the recommendations of the DoPT for starting the selection process for appointment of one post of Chief Information Commissioner (CIC) and 4 posts of Information Commissioners (ICs) in the current round of selection based on the earlier approved process, keeping in view, inter-alia, the observations and directions of the Supreme Court. Subsequently, applications were invited for appointment as ICs from eligible persons vide circular dated 31.5.2013 and advertisements in the leading newspapers with the last date of receipt of applications as 28.6.2013. In response, 422 applications had been received by the last date i.e. 28.6.2013. Category wise breakup of applicants is given in the Annexure. As per Section 12(5) of the RTI Act, 2005, the CIC & ICs shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.

Secretary (P) informed that the Central Information Commission presently had besides the CIC, 6 ICs. Shri M. L. Sharma, IC had tendered his resignation with effect from 4th September, 2013. Besides, Shri Satyananda Mishra, CIC would also complete his tenure on 4.9.2013. Thus, after 4.9.2013, there would be 5 ICs in the

Central Information Commission. In the light of decision of the Hon'ble Prime Minister and likely vacancies, the Search Committee decided to prepare panels for five posts of Information Commissioners, with three persons in each panels.

The Committee decided to take into consideration the width, diversity, relevance and length of experience of the applicants, with some preference for legal background and strategic exposure and eminence in public life, knowledge and experience in the relevant field. The Committee after scrutinizing the particulars of the applicants and after detailed discussions, recommended the following five panels, each in the alphabetical order, for consideration of the Selection Committee as provided in section 12(3) of the RTI Act for making recommendations for appointment of ICs:

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi
- (III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

The Committee decided that DoPT should seek reports from IB and vigilance clearance from the respective Cadre Control Authorities/Ministries. The Committee decided that keeping in view the number of ICs in position in the Central Information Commission and increasing pendency of cases, there was a need to urgently finalise the selection of the ICs. As seeking reports from CVC would take considerable time, it was decided that DoPT should seek reports for the persons listed in the panels from CBI if they were under any investigation by the CBI. Thereafter, the panels would be placed before the Selection Committee chaired by Hon'ble Prime Minister for consideration.

(Dr. S. K. SARKAR)
Secretary (Personnel)

(AMRITA PATEL)
Chairperson, NDDB

(PULOK CHATERJI)
Principal Secretary to
Prime Minister

(AJIT SETH)
CABINET SECRETARY

Annexure**Category-wise break up of applicants**

<u>Category</u>	<u>No. of applicants</u>
Law	65
Science & Technology	30
Social service	22
Management	81
Journalism	20
Mass Media	11
Administration and Governance	177
Others	16
Total	422

No. 4/3/2013-IR
DEPARTMENT OF PERSONNEL AND TRAINING

Present: **Shri Ajit Seth, Cabinet Secretary** ... In chair
Shri Pulok Chatterji, Principal Secretary to Prime Minister
Shri S.K. Sarkar, Secretary (Personnel)
Ms. Amrita Patel, Chairperson, NDDB

[Shri Ashok Thakur, Secretary (Higher Education) could not attend. Shri B.A. Agrawal, Law Secretary recused himself as he was one of the candidates]

The Search Committee was informed that at present there are six Information Commissioners functioning in the Central Information Commission apart from the Chief Information Commissioner. The Committee was informed that the Chief Information Commissioner, Shri Satyananda Mishra is due to complete his tenure on 04.09.2013 and that Shri M.L. Sharma, Information Commissioner, has tendered his resignation with effect from 04.09.2013.

2. The Committee was informed that the Prime Minister had approved the recommendations of the Department of Personnel and Training for beginning the selection process for appointment to the post of Chief Information Commissioner and four posts of Information Commissioner in the current round of selection based on the earlier approved process, keeping in view, inter-alia, the observations and directions of the Supreme Court.

3. As per Section 12(5) of Act, the Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. The Commissioner shall not be a MP or MLA or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. The Committee was informed of the Supreme Court's directions/ observations in the Writ Petition filed by Shri Namit Sharma as indicated in Annexure I.

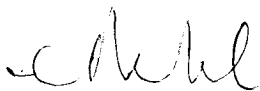
3. The Committee was informed that the circular seeking applications from interested persons for the post of Information Commissioners was posted on the website of DoPT on 31.05.2013 and an advertisement was also published in two leading English newspapers and in one Hindi newspaper. The last date for receipt of applications was 28.06.2013. The Committee was informed that a total of 422 applications have been received by the last date. The details of the 422 applicants are at Annexure II.

4. In the light of the decision to select one CIC and four ICs during the current process of selection, the Committee decided to prepare panels for five posts of Information Commissioners with three names in each panel.

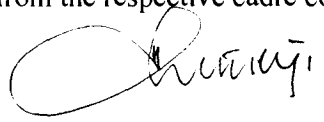
5. The Committee after considering the details of the applicants, their educational qualifications, the width, diversity, relevance and length of their experience, and after detailed discussions, recommended the following five panels, each in alphabetical order, for consideration of the Committee prescribed in Section 12(3) of the RTI Act for

- Panel I**
- (i) Shri Dr. Mrutyunjay Sarangi
 - (ii) Shri Sanjeev Kumar Tripathi
 - (iii) Shri Yashovardhan Azad
- Panel II**
- (i) Shri Girish Chandra Chaturvedi
 - (ii) Shri Sharat Sabharwal
 - (iii) Ms. Sheila Sangwan
- Panel III**
- (i) Ms. Manjula Prasher
 - (ii) Shri Pradeep Kumar Misra
 - (iii) Ms. Vibha Puri Das
- Panel IV**
- (i) Dr. Brahm Avtar Agrawal
 - (ii) Shri M.A. Khan Yusufi
 - (iii) Shri Sunil Kumar Chaudhary
- Panel V**
- (i) Dr. Anuradha Verma
 - (ii) Shri Madabhushi Sridhar Acharyulu
 - (iii) Shri Satya Prakash

6. Keeping in view the urgent need to fill the vacancies of Information Commissioners and that seeking report from the Central Vigilance Commission would take considerable time, the Committee decided that the Department of Personnel and Training may seek reports from the Central Bureau of Investigation in respect of the shortlisted persons as to whether these persons are under any investigation by the CBI. The Committee also decided that DoPT may also obtain reports from Intelligence Bureau in respect of all the shortlisted persons and vigilance clearance from the respective cadre controlling authorities.


(Amrita Patel)


(S.K. Sarkar)


(Pulok Chatterji)


(Ajit Seth)

Pages 8-59

Pages No. **8-59** in the file contain list of 422 applicants alongwith their Educational Qualifications, Addresses and other particulars which are personal in nature and exempt from disclosure under Section 8(i) (j).

A list of names of 422 applicants without their personal information and assigning page number, however, is added in the file.

List of applicants for the post of ICs in CIC against circular dated 31.5.2013 and advertisement in newspaper

S.No.	Name
1	A. Chittaranjan Mohandoss
2	A.K. Goyal
3	A.K. Mangotra
4	A.K. Upadhyay
5	A.K.Sharma
6	A.N. Pahuja
7	A.P. Lakshmi
8	Abdul Rashid
9	Abhay Kumar Khanna
10	Abhishek Kumar
11	ABL Srivastava
12	Aditya Prakash
13	Ajay Banerjee
14	Ajay Chadha
15	Ajay Kumar Singh
16	Ajay Singh
17	Ajit Kumar Sinha
18	Ajit Narayan Kanitkar
19	Ajit Pathak
20	Akhtar Ali Naqvi
21	Akula Rusheekeshwara Rao
22	Alaka Nanda Dash
23	Alok K. Mishra
24	Amarendra Mahapatra
25	Amarnath Sahay
26	Amit Kumar
27	Amitabh Agnihotri
28	Aneesh Gurudas
29	Anil Bhushan Prasad
30	Anil Kumar
31	Anil Kumar
32	Anil Kumar Agarwal
33	Anil Kumar Chaturvedi
34	Anil Kumar Sharma
35	Anil Malik
36	Anirudh Sharma
37	Anita Chaudhary
38	Anuradha Verma
39	Anwar Azim Khan
40	Archana Datta
41	Arun Kumar
42	Arun Kumar Jain
43	Arun Kumar Misra
44	Arun Kumar Verma
45	Arun Som
46	Arvind Kumar Awasthi
47	Ashok Chander Parkash
48	Ashok Kumar Sar
49	Ashok S. Karamadi
50	Ashok Sharma
51	Ashok Shrivastav

S.No.	Name
52	Asseem Mohamedali Shaikh
53	Avinash Bajj
54	Azad Singh Kateria
55	B. C. S. Baliga
56	B. S. Joon
57	B.K.Gupta
58	B.N. Dutta
59	Bal Mukund Sinha
60	Bashir Ahmad Malik
61	Bhaswati Mukherjee
62	Bhola Nath
63	Bhushan Lal Razdan
64	Bimal Kanti Sahu
65	Binay Mohan Prasad
66	Binod Kumar Singh
67	Bipin Bihari Srivastava
68	Braham Dutt
69	Brahm Avtar Agrawal
70	Brajendra Kumar Singh
71	Brijendra Mohan Sinha
72	Brijesh Kumar Gupta
73	Brijesh Kumar Mishra
74	Brijindar Singh Brar
75	C. Karthikeyan Nair
76	C.M. Tom Manohar
77	Chanchal Khurana
78	Chanderkant J. Karira
79	Chandra Shekar Balakrishnan
80	Chappidi Venkateswara Nana Rao
81	Chattar Singh
82	Chukka Kondaiah
83	Cinnaraja G Naidu
84	D.R. Meena
85	D.R.S. Chaudhary
86	D.S. Rastogi
87	Daulat Jotwani
88	Deepak Sengupta
89	Desh Deepak Verma
90	Devakumar A.D.
91	Devendra Nath Agarwal
92	Dharak Jagdishkumar Patel
93	Dhiraj Kukreja
94	Dinesh Kumar Gupta
95	Divya Jyoti Jaipuria
96	G. Manoj Someswar
97	G. Raghunatha Reddy
98	G. Sudhir
99	G.A. Rajkumar
100	Gautam Kothari
101	Girdhari Lal Huriwal
102	Giridhari Mohanty

S.No.	Name
103	Girish Chandra Chaturvedi
104	Girish Mittal
105	Girish Sharma
106	Gopal Krishna Pandey
107	Gurjot Singh Malhi
108	H.K. Mudgil
109	Hanuman Dutt Tripathi
110	Harbans Lal
111	Hardeep Singh Kingra
112	Harinder Dhingra
113	Harish Kumar K
114	Harprasad Kain
115	Harsh Bhal
116	Hasib Ahmad
117	Hemlata Verma
118	Indu Gupta
119	J K Pandey
120	J.K. Khanna
121	J.P. Dange
122	Jai Prakash
123	Jayant Janardhan Gangrediwar
124	Jayashree Gupta
125	Jhumpa Srimany Paul
126	Joginder Singh Sudan
127	K. Madhavan Nair
128	K. Mohandas
129	K. Ramachandirann
130	K.B. Kempe Gowda
131	K.K.Katiyar
132	K.L. Dhingra
133	K.S. Sankaranarayanan
134	K.Venkateshwar.Rao
135	Kailash Gupta
136	Kallam Siva Prabhakara Reddy
137	Kalyan Chaudhuri
138	Kamal Kulshreshtha
139	Kamal Nayan Shrimal
140	Kamlesh Chandra Pathak
141	Kamleshwar K Singh
142	Kandregula VenkataRamana
143	Kanhaiya Shahi
144	Karan Kumar Pahuja
145	Kaushal Chaudhary
146	Kavindra Bhatt
147	Kesari Rajshri Vijaykumar
148	Keshav Chandra
149	KIRAN KAKULLA
150	Kiran Pal Singh
151	Kodati Viyyanna Rao
152	Koppula Prem Chand
153	Krishan Lal Khanna
154	Krishan Pal Singh
155	Krishna Harischandra Rao

S.No.	Name
156	Krishna Prakash Lal
157	Kshetra Pal Singh
158	L.D. Mandloi
159	L.R. Sehgal
160	Lalit Sharma
161	Lall Chand Singhi
162	Lamba Ricky
163	Law Kumar Mishra
164	Laxman Das
165	Laxmi Narayan Hindolia
166	Lijo Stephen Chacko
167	M.A. Khan Yusufi
168	M.B. Kanavi
169	M.C. Thakur
170	M.K. Srivastava
171	M.R. Ranga-natha
172	Madabhushanam Sridhar Acharyulu
173	Mahendra Kumar Goel
174	Mahendra Kumar Mitharwal
175	Manik Kakra
176	Manjula Prasher
177	Manorajan Mohanty
178	Manzoor Ahmad Reshi
179	Mayank Chaube
180	Meera Chhibber
181	Mira Mehrishi
182	MohammedAfzal
183	Mohanlal
184	Mohd. Athar Shamsi
185	Mohd. Haleem Khan
186	Mohmed Shafi
187	Mrutyunjay Sarangi
188	Mukesh Kumar Gupta
189	Munish Kumar Sharma
190	Munish Sibal
191	N. Chenbaharaman
192	N. Hariharan
193	N. Rama Rao
194	N.K. Raghupathy
195	N.Somasundaram
196	Nabin Kumar Kole
197	Nand Kishore Sapra
198	Narendra Mishra
199	Naresh Chandra Joshi
200	NC Marwah
201	Neeraj Kumar
202	Niranjan Pant
203	Nune Srinivasa Rao
204	O K Manjunatha
205	Om Prakash
206	Om Prakash Khorwal
207	Om Prakash Mehta
208	Om Prakash Nitharwal

S.No.	Name
209	Om Prakash Saxena
210	Om Prakash Singh Malik
211	P. Ayyam Perumal
212	P. Gopinath
213	P. Murugesan
214	P. S. Rathore
215	P. Uma Shankar
216	P.K. Malhotra
217	P.K. Mehta
218	P.K. Padhy
219	P.R. Devi Prasad
220	P.R. Gupta
221	P.R. Katare
222	P.R. Sudhakar
223	P.S. Srinath
224	Paidi Govinda Rao
225	Palvinder Singh Bhalla
226	Pamidimukkala Venkata Ramana Murthy
227	Pankaj Srivastava
228	Panumati Sonvane
229	Parvinder Sohi Behuria
230	Patri Vasudevan
231	Pawan Kumar Jain
232	Pawan Kumar Sharma
233	Pedapudi Srinivas
234	Prabhat Dabral
235	Prabhat Kumar Chaturvedi
236	Prabir Kumar Dutta
237	Pradeep Bhalla
238	Pradeep Kumar Misra
239	Pradip Kumar Bishnoi
240	Prakash C. Bartuniya
241	Pranay Sahay
242	Prasanna Kumar Pradhan
243	Prashanth Rajkumar Ambure
244	Prateek Pandey
245	Pratibha Khanna
246	Prem Chand Pal
247	Premlal Sinha
248	Priti Mohanty
249	Priya Ranjan Dash
250	Promilla Shankar
251	Puppala Raj Kumar
252	Pushp Raj Singh
253	R. Chandramohan
254	R. Venkateswarlu
255	R.C. Arora
256	R.C. Punia
257	R.K. Singh
258	Rajan K Medhekar
259	Rajashekar B Kanavi
260	Rajender Mohan Malla

S.No.	Name
261	Rajendra Digambar Diwe
262	Rajendra Kumar Gupta
263	Rajendra Kumar Rastogi
264	Rajendra Kumar Tripathi
265	Rajendrakumar Ranjitsingh Chaudhari
266	Rajendramohan Gonela
267	Rajesh Badal
268	Rajinder Chouhan
269	Rajinder Singh Sharma
270	Rajiv
271	Rajiv Agarwal
272	Rajiv Tikoo
273	Rajkumar Jain Satbhaiya
274	Rajmohinder Singh Brar
275	Rakesh Behari
276	Rakesh Kacker
277	Rakesh Shrivastava
278	Rakesh Vasisht
279	Ram Adhar Singh
280	Ram Chandra Mishra
281	Rameshwar Roy
282	Ramnath Pradeep
283	Rathindra Nath Mahanty
284	Ravinder Kumar
285	Ravish Kumar
286	Rishi Kumar Sharma
287	Rohit Bhatia
288	RS Balhara
289	S Satish
290	S Vijay Kumar
291	S. Chellapa
292	S. Jagadeesan
293	S. Jalaja
294	S. Karuthiah Pandian
295	S. Shamsheer Ahmed
296	S. Vincent
297	S.A. Hasnain
298	S.C. Panda
299	S.C. Sinha
300	S.Chandrasekhar
301	S.F. Mohamed Yousuf
302	S.L. Raina
303	S.P. Dhasmana
304	S.S Minhas
305	S.S.Channy
306	Sachi Chaudhuri
307	Sachidanandam Jayaraman
308	Sadhna Dikshit
309	Sajid Ali
310	Samirendra Chatterjee
311	Sandeep Kumar
312	Sandhya Baliga

S.No.	Name
313	Sanjay Kumar
314	Sanjeev Kumar Tripathi
315	Sarbajit Roy
316	Satya Narayan Ray
317	Satya Prakash
318	Satya Prakash
319	Satya Vrata Mehrotra
320	Sayan Chatterjee
321	Sayyed Rajaa Hussain Rizwi
322	Mohinder Kumar
323	Shahab Alam
324	Shailesh Chandra Chaturvedi
325	Sharadchandra Narayan Datar
326	Sharat Sabharwal
327	Sharda Prasad
328	Sharmila Mukherjee
329	Shashi Kant Sharma
330	Shefalika Ghosh Samaddar
331	Sheila Sangwan
332	Shilesh Sharma
333	Shivaji Naik
334	Shivanand Sharma
335	Shubhabrata Bhattacharya
336	Shubhendra Jha
337	Shyam Sunder Garg
338	Sidhartha Pradhan
339	Sivaraman Anant Narayan
340	SKH Johnson
341	Smt. S. Venkamma
342	Sonika Gupta
343	Srimanim Beikhas Kujur
344	Srinivas Addepalli
345	Srinivas Madhav
346	Stanley Coutinho
347	Subhash Chandra Agrawal
348	Subhashish Sarkar
349	Sudha Mahalingam
350	Sudhakar Chopra
351	Sudhanshu Ranjan
352	Sudhir Kumar Beri
353	Sudhir Mital
354	Sudrishti Narayan Tripathi
355	Sukhraj Pal Kochhar
356	Sunil Krishna
357	Sunil Kumar
358	Sunil Kumar Chaudhary
359	Sunil Kumar Gayaprasad Mishra
360	Sunil Rana
361	Surendra Singh Fonia
362	Suresh Kumar Khetarpal
363	Suresh Kumar Sharma
364	Suresh Kumar Virmani
365	Surinder Kumar Gaur
366	Surinder Pal
367	Susan Mathew

S.No.	Name
368	Sushil Kumar Kapoor
369	Swoyam Prakash Rout
370	Syed Javeed Ahmed
371	Syed Mohd Mustafa
372	T. Gopal Singh
373	T. Umamaheswara Rao
374	T.C. Gupta
375	T.S. Saravanan
376	Tangeda Venkata Siva Nageswara Rao
377	Tapas Tiwari
378	Tejinder Singh Bedi
379	Teki Suresh Kumar
380	Thomas Chelikuzhil Benjamin
381	Trivikram Nath Tiwari
382	TS Chauhan
383	Uday Kumar Varma
384	Ugrasen Pandey
385	Usha Grace Antony
386	Uttam Bir Singh Bedi
387	Uttam P. Khobragade
388	Utthan Kumar Bansal
389	V. K. Bahuguna
390	V. Praveen
391	V. Rajagopal
392	V. Ramaraj
393	V. Shankara Sharma
394	V. Subramaniam
395	V.K. Arora
396	V.K. Chaturvedi
397	Vaddeti Devender
398	Vaibhav Kapse
399	Varun Arya
400	Ved Prakash Khichuka
401	Vedaraman Ravi
402	Veena Upadhyaya
403	Veenu Paliwal
404	Vibha Puri Das
405	Vibhanshu Joshi
406	Vinay Mittal
407	Vineet Kumar Gupta
408	Vinod Kapoor
409	Vinod Khurana
410	Vipin Jha
411	Virendra Ram
412	Vishal Sharma
413	Vishvanath Hiremath
414	Vivek Tyagi
415	VM Tandon
416	VVSP Ramachandra Rao
417	Waqar Yunus
418	Yadvendra Singh Bhati
419	Yashovardhan Azad
420	YPS Mohan
421	Yudhishter Sharma
422	Zahid Hussain

Declarations and directions of the Supreme Court in its judgement dated 03/09/2013 in Review petition in Namit Sharma Case

"Under Order XL of the Supreme Court Rules, 1966 this Court can review its judgment or order on the ground of error apparent on the face of record and on an application for review can reverse or modify its decision on the ground of mistake of law or fact. As the judgment under review suffers from mistake of law, we allow the Review Petitions, recall the directions and declarations in the judgment under review and dispose of Writ Petition (C) No. 210 of 2012 with the following declarations and directions:

(i) We declare that Sections 12(5) and 15(5) of the Act are not *ultra vires* the Constitution.

(ii) We declare that Sections 12(6) and 15(6) of the Act do not debar a Member of Parliament or Member of the Legislature of any State or Union Territory, as the case may be, or a person holding any other office of profit or connected with any political party or carrying on any business or pursuing any profession from being considered for appointment as Chief Information Commissioner or Information Commissioner, but after such person is appointed as Chief Information Commissioner or Information Commissioner, he has to discontinue as Member of Parliament or Member of the Legislature of any State or Union Territory, or discontinue to hold any other office of profit or remain connected with any political party or carry on any business or pursue any profession during the period he functions as Chief Information Commissioner or Information Commissioner.

(iii) We direct that only persons of eminence in public life with wide knowledge and experience in the fields mentioned in Sections 12(5) and 15(5) of the Act be considered for appointment as Information Commissioner and Chief Information Commissioner.

(iv) We further direct that persons of eminence in public life with wide knowledge and experience in all the fields mentioned in Sections 12(5) and 15(5) of the Act, namely, law, science and technology, social service, management, journalism, mass media or administration and governance, be considered by the Committees under Sections 12(3) and 15(3) of the Act for appointment as Chief Information Commissioner or Information Commissioners.

(v) We further direct that the Committees under Sections 12(3) and 15(3) of the Act while making recommendations to the President or to the Governor, as the case may be, for appointment of Chief Information Commissioner and Information Commissioners must mention against the name of each candidate recommended, the facts to indicate his eminence in public life, his knowledge in the particular field and his experience in the particular field and these facts must be accessible to the citizens as part of their right to information under the Act after the appointment is made.

Mr. Manoj JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



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भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पुरस्कार विभाग
नार्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
(NORTH BLOCK, NEW DELHI-110001)

D.O. No. 4/3/2013-IR

23rd August, 2013

Dear Sir,

I am enclosing a list of 15 persons, who are being considered for senior appointments in the Government of India, as Annexure - I. Copies of their bio-data are enclosed at Annexure-II.

2. I shall be grateful if you could kindly send a report regarding character, antecedents, reputation, integrity, political affiliations and connection with communal/unlawful organizations, if any, in respect of these persons by 2nd September, 2013.

Yours Sincerely

Manoj Joshi

Shri Syed Asif Ibbrahim
Director
Intelligence Bureau
34, Sardar Patel Marg,
New Delhi



सूचना का
अधिकार

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LIST OF NAMES

1. Dr. Anuradha Verma
2. Dr. Brahm Avtar Agrawal , Secy, DOLA.
3. Shri Girish Chandra Chaturvedi , form Secy - - - -
4. Ms. Manjula Prasher
5. Dr. Mrutyunjay Sarangi , Secy. Ministry of Labour
6. Shri M.A.Khan Yusufi
7. Shri Madabhushi Sridhar Acharyulu
8. Shri Pradeep Kumar Misra
9. Shri Sanjeev Kumar Tripathi
10. Shri Satya Prakash
11. Shri Sharat Sabharwal
12. Ms. Sheila Sangwan , form - - -
13. Shri Sunil Kumar Chaudhary
14. Ms. Vibha Puri Das , Secy, Ministry of Ind. Affairs
15. Shri Yashvardhan Azad

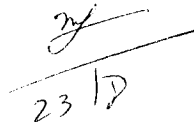
62

CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

.....Ministry/Department is requested to furnish vigilance clearance in respect of the Indian Service officer(s) mentioned in Annexure – I. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.


23/8

(Manoj Joshi)
Joint Secretary

DoPT ID no. 4/3/2013-IR, dated August, 2013

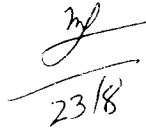
Dear

I am enclosing a list of 15 persons, who are being considered for senior appointments in the Government of India, as Annexure -I. Copies of their bio-data are enclosed at Annexure-II.

2. I shall be grateful if you could kindly send a report in respect of these persons, if they are under any investigation by the CBI, by 2nd September, 2013.

Yours Sincerely

Manoj Joshi



23/8

Shri S. Javeed Ahmad
Joint Director - Policy
Central Bureau of Investigation,
New Delhi

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेशन विभाग
नॉर्थ ब्लॉक, नई दिल्ली 110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001

D.O. No. 4/3/2013-IR

23rd August, 2013

Dear *Shri Javeed Ahmad*

I am enclosing a list of 15 persons, who are being considered for senior appointments in the Government of India, as Annexure - I. Copies of their bio-data are enclosed at Annexure-II.

2. I shall be grateful if you could kindly send a report in respect of these persons, if they are under any investigation by the CBI, by 2nd September, 2013.

Yours Sincerely

Manoj Joshi

Manoj Joshi

MC

Shri S. Javeed Ahmad
Joint Director - Policy
Central Bureau of Investigation,
New Delhi



सूचना का
अधिकार

<http://movers.in.gov.in>

CONFIDENTIAL

**Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)**

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Department of Personnel and Training is requested to furnish vigilance clearance in respect of the Indian Administrative Service officers mentioned in Annexure – I. Copies of their bio-data are enclosed at Annexure-II.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.

Manoj Joshi

(Manoj Joshi)
Joint Secretary
ofc

Joint Secretary(S&V-II), DoPT, North Block, New Delhi

DoPT ID no. 4/3/2013-IR, dated 23rd August, 2013

16-

CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Department of Posts is requested to furnish vigilance clearance in respect of the Indian Postal Service officer mentioned in Annexure – I. Copy of her bio-data is enclosed at Annexure-II.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.

Manoj Joshi

(Manoj Joshi)
Joint Secretary

ok

Secretary(Posts), Dak Bhawan, New Delhi

DoPT ID no. 4/3/2013-IR, dated 23rd August, 2013

23096060

Mr. ...
...

23096103 - ...

CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Ministry of Home Affairs is requested to furnish vigilance clearance in respect of the Indian Police Service officers mentioned in Annexure – I. Copies of their bio-data are enclosed at Annexure-II.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.


(Manoj Joshi)
Joint Secretary
g/c

Joint Secretary(Police-I), MHA, North Block, New Delhi

DoPT ID no. 4/3/2013-IR, dated 23rd August, 2013

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CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Ministry of External Affairs is requested to furnish vigilance clearance in respect of the Indian Foreign Service officer mentioned in Annexure – I. Copy of his bio-data is enclosed at Annexure-II.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.

Manoj Joshi
(Manoj Joshi)
Joint Secretary
o/c

Joint Secretary(CNV), MEA, Jawahar Lal Nehru Bhawan, Janpath,
New Delhi

DoPT ID no. 4/3/2013-IR, dated 23rd August, 2013

CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Central Board of Excise and Customs is requested to furnish vigilance clearance in respect of the Indian Revenue Service (Customs) officer mentioned in Annexure – I. Copy of her bio-data is enclosed at Annexure-II.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 2nd September, 2013.

(Manoj Joshi)
Joint Secretary
g/c

Director General of Vigilance, CBEC, Hotel Samrat, Chanakyapuri,
New Delhi

DoPT ID no. 4/3/2013-IR, dated 23rd August, 2013

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2nd edn ✓
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LIST OF NAMES

INDIAN ADMINISTRATIVE SERVICE

1. Shri Girish Chandra Chaturvedi
2. Dr. Mrutyunjay Sarangi
3. Shri Pradeep Kumar Misra
4. Ms. Vibha Puri Das

INDIAN POLICE SERVICE

1. Shri Sanjeev Kumar Tripathi
2. Shri Yashvardhan Azad

INDIAN POSTAL SERVICE

1. Ms. Manjula Prasher

INDIAN FOREIGN SERVICE

1. Shri Sharat Sabharwal

INDIAN REVENUE SERVICE (CUSTOMS)

1. Ms. Sheila Sangwan

INDIAN LEGAL SERVICE

1. Dr. Brahm Avtar Agrawal
2. Shri M.A.Khan Yusufi

Pages 72-94

Pages No. **72-94** contain reports of IB, CBI, Department Vigilance report etc. in respect of shortlisted candidates which are exempt from disclosure under Section 8(i)(j) of the RTI Act, 2005.

(95

F.No. 4/3/2013-IR
Government of India
Ministry of Personnel, Public Grievances and Pensions
Department of Personnel and Training

North Block, New Delhi
Dated 16th September, 2013

Meeting Notice

The second meeting of the Search Committee, for the current round of selection for appointment of Information Commissioners in the Central Information Commission, would be held on **18.09.2013** at **5.00 p.m.** in the Cabinet Secretariat, Rashtrapati Bhawan, New Delhi.

Kindly make it convenient to attend the meeting.

Manoj Joshi

(Manoj Joshi)
Joint Secretary
2309 3668

1. The Cabinet Secretary, Cabinet Secretariat, Rashtrapati Bhawan, New Delhi.
2. The Principal Secretary to PM, Prime Minister's Office, South Block, New Delhi.
3. Secretary (Higher Education), D/o Higher Education, Shastri Bhawan, New Delhi.
- Rohit*
18/9/13 4. Secretary (Personnel), D/o Personnel & Training, North Block, New Delhi.
5. Ms. Amrita Patel, Chairman (NDDB), Anand, Gujarat-388 001.

Copy to:-

1. PPS to Cabinet Secretary, to provide Secretarial assistance to the Search Committee.
- Rohit*
18/9 2. PPS to Secretary, DoPT for information.

Issued through Person Block

F.No. 4/3/2013-IR
Government of India
Ministry of Personnel, Public Grievance and Pensions
Department of Personnel and Training

North Block, New Delhi
Dated 18th September, 2013

In continuation of this Department's communication of even number dated 16.09.2013 intimating the convening of second meeting of Search Committee for current round of selection for appointment of Information Commissioners in the Central Information Commission to be held on 18.09.2013 at 5.00 p.m. in the Cabinet Secretariat, Rashtrapati Bhavan, kindly find enclosed agenda note for the meeting.

Manoj Joshi

(Manoj Joshi)

Joint Secretary (AT&A)

23093668

(Signature)

*Issued through
Personnel*

1. The Cabinet Secretary, Cabinet Secretariat, Rashtrapati Bhawan, New Delhi.
2. The Principal Secretary to PM, Prime Minister's Office, South Block, New Delhi.
3. Secretary(Higher Education), D/o Higher Education, Shastri Bhavan, New Delhi.
4. Secretary (Personnel), D/o Personnel and Training, North Block, New Delhi.
5. Ms. Amrita Patel, Chairperson (NDBB), Anand, Gujarat-388001.

*Robin
18/9/13*

Copy to:

1. PPS to Cabinet Secretary, to provide Secretarial assistance to the Search Committee.
2. PPS to Secretary, DoPT for information.

Agenda Note

Second meeting of Search Committee for selection of Information Commissioners in the Central Information Commission to be held on 18th September, 2013 at 5.00 p.m. in Cabinet Secretariat, New Delhi

As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, **not exceeding ten**, as may be deemed necessary. At present, the Central Information Commission has Chief Information Commissioner and 4 (Four) Information Commissioners.

2. PMO has conveyed the approval of the Prime Minister for appointment of one post of Chief Information Commissioner and four posts of Information Commissioners in the current round of selection based on the earlier approved process, keeping in view, *inter alia*, the observation and directions of the Supreme Court.

3. PMO has also conveyed approval for a Search Committee, as constituted on the last round of selection process, as given below:-

- | | | |
|-----------------------------------|---|----------|
| i. Cabinet Secretary | - | Chairman |
| ii. Principal Secretary to PM | - | Member |
| iii. Secretary (Personnel) | - | Member |
| iv. Secretary (Higher Education) | - | Member |
| v. Secretary (Law) | - | Member |
| vi. Ms. Amrita Patel, Chairperson | - | Member |
| National Dairy Development Board | | |

4. The Search Committee met on 19.08.2013 and after scrutinizing the particulars of the applicants and after detailed discussions, recommended the following 5 panels for consideration of the Committee prescribed in section 12(3) of the RTI Act for making recommendations to the President for appointment of Information Commissioners:

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi
- (III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

5. The Search Committee further decided that DoPT should seek reports from IB and vigilance clearance from the respective Cadre Control Authorities/Ministries. The Committee decided that keeping in view the number of ICs in position in the Central Information Commission and increasing pendency of cases, there was a need to urgently finalise the selection of the ICs. As seeking reports from CVC would take considerable time, it was decided by the Committee that DoPT should seek reports for the persons listed in the panels from CBI if they were under any investigation by the CBI. Thereafter, the panels would be placed before the Selection Committee chaired by Hon'ble Prime Minister for consideration. The minutes of the Search Committee are at Annexure 'A'.

6. Accordingly, inputs from IB, CBI and vigilance clearance from the concerned ministries/Cadre controlling authorities in r/o serving/retired Government Officers has been obtained and would be placed before the committee at the time of the meeting.

7. A table indicating the eminence, knowledge and experience of the empanelled persons may be seen at Annexure 'B'.

8. In the meanwhile, the Hon'ble Supreme Court on 3.9.2013 in Review Petition (C) No. 2309 of 2012 arising out of WP (C) No. 210 of 2012 in Namit Sharma case, whereby the constitutional validity of Sub-section (5) and (6) of Section 12 was challenged, has delivered judgment. The operative part of the judgement may be seen at Annexure 'C'.

9. The Search Committee on the basis of inputs from IB, CBI and vigilance clearance from the concerned Ministries/Cadre controlling authorities in r/o serving/retired Government Officers and the judgement of Hon'ble Supreme Court may determine the suitability of applicants included in the panels for the post of Information Commissioners in the Central Information Commission. A list of 422 applicants duly tabulated in accordance with Section 12(5) of RTI Act may also be seen at Annexure 'D'.

**Annexure A to D not added to avoid
repetition of papers.**

Draft

CONFIDENTIAL

No. 4/3/2013 – IR

Department of Personnel and Training

Minutes of the second meeting of the Search Committee held on 18.9.2013 for preparing panels for the posts of Information Commissioners in Central Information Commission

Present: Shri Ajit Seth, Cabinet SecretaryIn Chair
Shri Pulok Chatterji, Principal Secretary to Prime Minister
Shri Ashok Thakur, Secretary (Higher Education)
Shri S.K. Sarkar, Secretary (Personnel)

[Ms. Amrita Patel, Chairperson, NDDB could not attend. Shri B.A. Agrawal, Law Secretary recused himself as he was one of the applicants]

The Search Committee was informed that as desired by it in the first meeting on 19.8.2013, DoPT had obtained reports from the Central Bureau of Investigation and Intelligence Bureau in respect of shortlisted persons for the post of Information Commissioners in the Central Information Commission. Vigilance reports from the respective Cadre Controlling for the serving candidates had also been obtained.

2 The Committee was informed that IB had reported an exemption

Refers Vigilance Status of shortlisted person which cannot be disclosed as it is exempt under Section 8(1)(j) of the RTI Act, 2005.
Inf is disclosed invoking Section 10(i) of Act

(10)

Refers to vigilance status of candidate
Section 8(i)(j) and 10(1)

5. The Committee recommends the following 5 panels, each in alphabetical order, for consideration of the Committee prescribed in Section 12(3) of the RTI Act for making recommendations for appointment of Information Commissioners.

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan
- (IV) Ms. Sandhya Baliga (

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi

— → [Section 10(1) of RTI Act] /

(III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

6. In view of the urgent need to fill up the post of Information Commissioners in the CIC and that seeking report from the CVC would take considerable time, the Committee decided that the DoPT may obtain the vigilance status/reports from Cadre Controlling Authority, IB and CBI for Ms. Sandhya Baliga as was done for other shortlisted persons.

7. The Committee also considered the judgement dated 3.9.2013 of Hon'ble Supreme Court in review petition (C) no. 2309 of 2012 arising out of WP(C) no. 210 of 2012 in Namit Sharma case and observed that the shortlisting of persons done by it was in accordance with the judgement.

(Dr. S. K. SARKAR)
Secretary (Personnel)

(Ashok Thakur)
Secretary (Higher
Education)

(PULOK CHATTERJI)
Principal Secretary to
Prime Minister

(AJIT SETH)
CABINET SECRETARY

103

CONFIDENTIAL

No. 4/3/2013 – IR

Department of Personnel and Training

Minutes of the second meeting of the Search Committee held on 18.9.2013 for preparing panels for the posts of Information Commissioners in Central Information Commission

Present: Shri Ajit Seth, Cabinet SecretaryIn Chair
Shri Pulok Chatterji, Principal Secretary to Prime Minister
Shri Ashok Thakur, Secretary (Higher Education)
Shri S.K. Sarkar, Secretary (Personnel)

[Ms. Amrita Patel, Chairperson, NDDB could not attend. Shri B.A. Agrawal, Law Secretary recused himself as he was one of the applicants]

The Search Committee was informed that as desired by it in the first meeting on 19.8.2013, DoPT had obtained reports from the Central Bureau of Investigation and Intelligence Bureau in respect of shortlisted persons for the post of Information Commissioners in the Central Information Commission. Vigilance reports from the respective Cadre Controlling for the serving candidates had also been obtained.

Refers to vigilance status of short listed
candidate.
Section 8(1)(j) and 10(1)

Refers to vigilance status of shortlisted candidates

Information exempt u/s 8(1)(j) and disclosable after invoking Section 10(1) of Act

5. The Committee recommends the following 5 panels, each in alphabetical order, for consideration of the Committee prescribed in Section 12(3) of the RTI Act for making recommendations for appointment of Information Commissioners.

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan
- (IV) Ms. Sandhya Baliga

[Section 10(1)]

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi

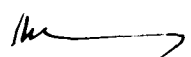
(III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

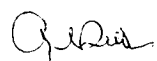
6. In view of the urgent need to fill up the post of Information Commissioners in the CIC and that seeking report from the CVC would take considerable time, the Committee decided that the DoPT may obtain the vigilance status/reports from Cadre Controlling Authority, IB and CBI for Ms. Sandhya Baliga as was done for other shortlisted persons..

7. The Committee also considered the judgement dated 3.9.2013 of Hon'ble Supreme Court in review petition (C) no. 2309 of 2012 arising out of WP(C) no. 210 of 2012 in Namit Sharma case and observed that the shortlisting of persons done by it was in accordance with the judgement.


(Dr. S. K. SARKAR)
Secretary (Personnel)


(Ashok Thakur)
Secretary (Higher
Education)


(PULOK CHATTERJI)
Principal Secretary to
Prime Minister


(AJIT SETH)
CABINET SECRETARY

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



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भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001

D.O. No. 4/3/2013-IR

19th September, 2013

Dear *Sir*

I am enclosing bio-data of Ms. Sandhya Baliga, IRS who is being considered for senior appointment in the Government of India.

2. I shall be grateful if you could kindly send a report regarding her character, antecedents, reputation, integrity, political affiliations and connection with communal/unlawful organizations, if any, by 24th September, 2013.

Yours Sincerely

Manoj Joshi

Manoj Joshi

Shri Syed Asif Ibbrahim
Director
Intelligence Bureau
34, Sardar Patel Marg,
New Delhi



सूचना का
अधिकार

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001

D.O. No. 4/3/2013-IR

19th September, 2013

Dear *Shri Javeed Ahmad*

I am enclosing bio-data of Ms. Sandhya Baliga, IRS who is being considered for senior appointment in the Government of India.

2. I shall be grateful if you could kindly send a report if she is under any investigation by the CBI, by 24th September, 2013.

Yours Sincerely

Manoj Joshi

Manoj Joshi

Shri S. Javeed Ahmad
Joint Director - Policy
Central Bureau of Investigation,
New Delhi



सूचना का
अधिकार

108
CONFIDENTIAL

Government of India
Ministry of Personnel, Public Grievance and Pension
Department of Personnel and Training
(IR-Division)

Subject:- Senior appointments in the Government of India – Grant of vigilance clearance – regarding

Central Board of Excise and Customs is requested to furnish vigilance clearance in respect of Ms. Sandhya Baliga, Indian Revenue Service officer.

2. This is required in connection with senior appointments in the Government of India. The Vigilance clearance should be sent to DoPT by 20th September, 2013.


(Mamta Kundra)
Joint Secretary

**Joint Secretary (Revenue), [Shri M.L. Meena] CBEC, North Block,
New Delhi**

DoPT ID no. 4/3/2013-IR, dated 19th September, 2013

Pages 109-115

Pages No. **109-115** contain reports of IB, CBI, Department Vigilance report etc. in respect of shortlisted candidates which are exempt from disclosure under Section 8(i)(j) of the RTI Act, 2005.

PRIME MINISTER'S OFFICE

South Block,
New Delhi – 110 011

Subject: Appointment of Information Commissioners in the Central Information Commission.

Reference is invited to the proposal in the note dated 26.09.2013 at page 12/n in DoPT File No. 4/3/2013-IR(Pt.) on the above subject.

2. The undersigned is directed to convey that the Prime Minister has been briefed about the matter. The date/time of the meeting of Selection Committee for selection of Information Commissioners is being finalized in consultation with MoS(PP).

3. DoPT's File No. 4/3/2013-IR(Pt.) is returned herewith.


(Dheeraj Gupta)
Joint Secretary to PM
Tel. No. 2301 5944

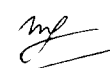
Secretary, Department of Personnel Training

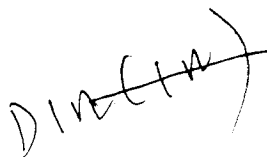
PMO ID no. 600/31/C/39/2013-ES.2

Dated 15.10.2013

Sury (P) - on tour

JS (A/2A)


17/10/13


DIN (H)


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I/3548147/2013

Confidential
Time Bound

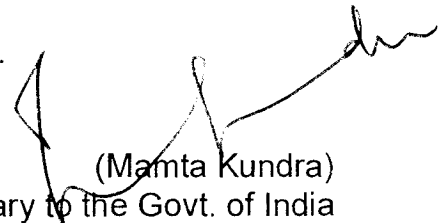
F.No. 4/3/2013-IR
Government of India
Ministry of Personnel, Public Grievances and Pensions
Department of Personnel and Training

North Block, New Delhi
Dated 07th November, 2013

Meeting Notice

A meeting of the Selection Committee for the post of Information Commissioners in the Central Information Commission will be convened under the Chairmanship of the Hon'ble Prime Minister at 10.30 a.m. on 10.11.2013 at 7, Race Course Road, New Delhi. A copy of the agenda note is attached.

2. Kindly make it convenient to attend the meeting.


(Mamta Kundra)
Joint Secretary to the Govt. of India
23094276

To

- 1) Smt. Sushma Swaraj, Leader of Opposition, Lok Sabha
- 2) Shri Kapil Sibal, Minister for Law & Justice, Shastri Bhavan, New Delhi

Copy to:

- i. Private Secretary to the Prime Minister
- ii. PS to MOS (PP)
- iii. PPS to Secretary (P)

**AGENDA NOTE FOR THE SELECTION COMMITTEE FOR THE POST OF INFORMATION
COMMISSIONERS IN THE CENTRAL INFORMATION COMMISSION
10th November, 2013, 10.30 a.m., 7, Race Course Road, New Delhi**

1.0 Introduction

Right to Information Act, 2005, mandates constitution of a Central Information Commission (CIC), consisting of the Chief Information Commissioner and such number of Information Commissioners not exceeding ten as may be deemed necessary. The Commission adjudicates appeals and complaints under the RTI Act. The current constitution of the CIC is as given below:

	Category	Present Incumbents in CIC
1.	Mass Media	Smt. Deepak Sandhu, IIS (Retd.), Chief Information Commissioner
2.	Administration	- Smt. Sushma Singh, IAS(Retd.) Information Commissioner - Shri Rajiv Mathur, IPS(Retd.) Information Commissioner - Shri Vijai Sharma, IAS(Retd.) Information Commissioner - Shri Basant Seth, (Banker) Information Commissioner

2.0 Legal Position

2.1 As per Section 12 (5) of Act, the Information commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. The Commissioner shall not be a MP or MLA or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

2.2 Sub-Section (2) of section 13 provides that every Information Commissioner shall hold office for a term of five years from the date on which he enters upon his office or till he attains the age of 65 years, whichever is earlier.

2.3 According to sub-section (3) of Section 12 of the Act, the Chief Information Commissioner and the Information Commissioners are appointed by the President on the recommendation of a Committee consisting of –

- i. The Prime Minister;
- ii. The Leader of Opposition in Lok Sabha ; and
- iii. A Union Cabinet Minister to be nominated by the Prime Minister

3.0 Constitution of the Committee

3.1 The Committee has now been constituted under Section 12(3) of the RTI Act 2005 with the following composition:

- i. The Prime Minister who shall be the Chairman of the committee,
- ii. Leader of Opposition
- iii. The Minister of Law and Justice.

4.0 Search Procedure

4.1 Prime Minister had approved the constitution of a Search Committee, as constituted on the last round of selection process, as given below:-

- | | | |
|----------------------------------|---|----------|
| i. Cabinet Secretary | - | Chairman |
| ii. Principal Secretary to PM | - | Member |
| iii. Secretary (Personnel) | - | Member |
| iv. Secretary (Higher Education) | - | Member |
| v. Ms. Amrita Patel, Chairperson | - | Member |
- National Dairy Development Board

4.2 Prime Minister has approved appointment on one post of Chief Information Commissioner and four posts of Information Commissioners in the Central Information Commissioner in the current round of selection. The Chief Information Commissioner in the Central Information Commission has already been appointed on 5th September, 2013 from amongst the existing Information Commissioners in the Central Information Commission.

4.3 422 applications have been received in response to a circular dated 31.05.2013 posted on the Department of Personnel and Training's website and through leading newspapers. A list of the applicants, with particulars in brief in a tabular form is annexed as **Annexure 'A'**.

4.4 The Search Committee met on 19.08.2013 and after scrutinizing the particulars of the applicants and after detailed discussions, recommended the following 5 panels, each in alphabetical order, for consideration of the Committee prescribed in section 12(3) of the RTI Act for making recommendations to the President for appointment of Information Commissioners. A copy of the minutes of the Search Committee is annexed as **Annexure 'B'**.

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi
- (III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

4.5 IR and Vigilance input from the Cadre Controlling Authority to the Search Committee

Refers to vigilance status of a short-listed candidate which is exempt from disclosure under Section 8(1)(j).

candidates suggested by the Search Committee is as under:

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan
- (IV) Ms. Sandhya Baliga

[Inf. exempt u/s 8(1)(j)]

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi
- (III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

Refer to vigilance status of a shortlisted candidate which is exempt from disclosure under Section 8(1)(g).

4.7 A summary of the particulars of the panels is annexed as **Annexure 'D'**. The particulars of the above applicants are at **Annexure 'E'**. The IB, CBI inputs and vigilance clearance from the concerned Ministry/Cadre Controlling Authority would be placed before the Selection Committee at the time of the meeting.

5.0 A Writ Petition was filed by Shri Namit Sharma against Union of India challenging the constitutional validity of sub-Sections (5) and (6) of Section 12 of the RTI Act. Union of India filed a Review Petition against the judgement dated 13.9.2012 of the Supreme Court. Hon'ble Supreme Court in its order dated 03.09.2013 allowed the review petition and gave certain declarations, which may be seen at **Annexure-F**. For the sake of emphasis, few of the directions is mentioned below:

- (i) We further direct that persons of eminence in public life with wide knowledge and experience in all the fields mentioned in Sections 12(5) and 15(5) of the Act, namely, law, science and technology, social service, management, journalism, mass media or administration and governance, be considered by the Committees under Sections 12(3) and 15(3) of the Act for appointment as Chief Information Commissioner or Information Commissioners.
- (ii) We further direct that the Committees under Sections 12(3) and 15(3) of the Act while making recommendations to the President or to the Governor, as the case may be, for appointment of Chief Information Commissioner and Information Commissioners must mention against the name of each candidate recommended, the facts to indicate his eminence in public life, his knowledge in the particular field and his experience in the particular field and these facts

must be accessible to the citizens as part of their right to information under the Act after the appointment is made.

6.0 Submitted for consideration of the Selection Committee for recommending names for the post of Information Commissioners in the Central Information Commission.

No. 4/3/2013-IR

DEPARTMENT OF PERSONNEL AND TRAINING

Minutes of the meeting of the Search Committee held on 19.08.2013 for preparing panels for the posts of Information Commissioners in Central Information Commission

Present: Shri Ajit Seth, Cabinet Secretary ... In chair
Shri Pulok Chatterji, Principal Secretary to Prime Minister
Shri S.K. Sarkar, Secretary (Personnel)
Ms. Amrita Patel, Chairperson, NDDB

[Shri Ashok Thakur, Secretary (Higher Education) could not attend. Shri B.A. Agrawal, Law Secretary recused himself as he was one of the candidates]

The Search Committee was informed that at present there are six Information Commissioners functioning in the Central Information Commission apart from the Chief Information Commissioner. The Committee was informed that the Chief Information Commissioner, Shri Satyananda Mishra is due to complete his tenure on 04.09.2013 and that Shri M.L. Sharma, Information Commissioner, has tendered his resignation with effect from 04.09.2013.

2. The Committee was informed that the Prime Minister had approved the recommendations of the Department of Personnel and Training for beginning the selection process for appointment to the post of Chief Information Commissioner and four posts of Information Commissioner in the current round of selection based on the earlier approved process, keeping in view, inter-alia, the observations and directions of the Supreme Court.

3. As per Section 12(5) of Act, the Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. The Commissioner shall not be a MP or MLA or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. The Committee was informed of the Supreme Court's directions/ observations in the Writ Petition filed by Shri Namit Sharma as indicated in Annexure I.

3. The Committee was informed that the circular seeking applications from interested persons for the post of Information Commissioners was posted on the website of DoPT on 31.05.2013 and an advertisement was also published in two leading English newspapers and in one Hindi newspaper. The last date for receipt of applications was 28.06.2013. The Committee was informed that a total of 422 applications have been received by the last date. The details of the 422 applicants are at Annexure II.

4. In the light of the decision to select one CIC and four ICs during the current process of selection, the Committee decided to prepare panels for five posts of Information Commissioners with three names in each panel.

5. The Committee after considering the details of the applicants, their educational qualifications, the width, diversity, relevance and length of their experience, and after detailed discussions, recommended the following five panels, each in alphabetical order, for consideration of the Committee prescribed in Section 12(3) of the RTI Act for

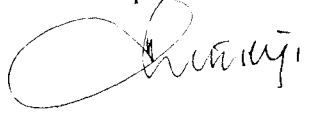
making recommendations for appointment of Information Commissioners:

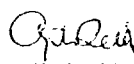
- Panel I**
- (i) Shri Dr. Mrutyunjay Sarangi
 - (ii) Shri Sanjeev Kumar Tripathi
 - (iii) Shri Yashovardhan Azad
- Panel II**
- (i) Shri Girish Chandra Chaturvedi
 - (ii) Shri Sharat Sabharwal
 - (iii) Ms. Sheila Sangwan
- Panel III**
- (i) Ms. Manjula Prasher
 - (ii) Shri Pradeep Kumar Misra
 - (iii) Ms. Vibha Puri Das
- Panel IV**
- (i) Dr. Brahm Avtar Agrawal
 - (ii) Shri M.A. Khan Yusufi
 - (iii) Shri Sunil Kumar Chaudhary
- Panel V**
- (i) Dr. Anuradha Verma
 - (ii) Shri Madabhushi Sridhar Acharyulu
 - (iii) Shri Satya Prakash

6. Keeping in view the urgent need to fill the vacancies of Information Commissioners and that seeking report from the Central Vigilance Commission would take considerable time, the Committee decided that the Department of Personnel and Training may seek reports from the Central Bureau of Investigation in respect of the shortlisted persons as to whether these persons are under any investigation by the CBI. The Committee also decided that DoPT may also obtain reports from Intelligence Bureau in respect of all the shortlisted persons and vigilance clearance from the respective cadre controlling authorities.


(Amrita Patel)


(S.K. Sarkar)


(Pulok Chatterji)


(Ajit Seth)

CONFIDENTIAL

No. 4/3/2013 – IR

Department of Personnel and Training

Minutes of the second meeting of the Search Committee held on 18.9.2013 for preparing panels for the posts of Information Commissioners in Central Information Commission

Present: Shri Ajit Seth, Cabinet Secretary ...In Chair
Shri Pulok Chatterji, Principal Secretary to Prime Minister
Shri Ashok Thakur, Secretary (Higher Education)
Shri S.K. Sarkar, Secretary (Personnel)

[Ms. Amrita Patel, Chairperson, NDDB could not attend. Shri B.A. Agrawal, Law Secretary recused himself as he was one of the applicants]

The Search Committee was informed that as desired by it in the first meeting on 19.8.2013, DoPT had obtained reports from the Central Bureau of Investigation and Intelligence Bureau in respect of shortlisted persons for the post of Information Commissioners in the Central Information Commission. Vigilance reports from the respective Cadre Controlling for the serving candidates had also been obtained.

Refers to vigilance status of candidates.
Exempt from disclosure under Section 8(i)(j).
Disclosed after invoking Section 10(i) of the Act.

Refers to vigilance status of candidates.
Exempt from disclosure under Section 8(1)(j)
of the Act.
Inf. disclosed after invoking provisions of
Section 10(1) of the Act.

5. The Committee recommends the following 5 panels, each in alphabetical order, for consideration of the Committee prescribed in Section 12(3) of the RTI Act for making recommendations for appointment of Information Commissioners.

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan
- (IV) Ms. Sandhya Baliga

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi

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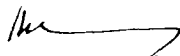
(III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

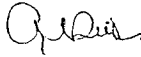
6. In view of the urgent need to fill up the post of Information Commissioners in the CIC and that seeking report from the CVC would take considerable time, the Committee decided that the DoPT may obtain the vigilance status/reports from Cadre Controlling Authority, IB and CBI for Ms. Sandhya Baliga as was done for other shortlisted persons..

7. The Committee also considered the judgement dated 3.9.2013 of Hon'ble Supreme Court in review petition (C) no. 2309 of 2012 arising out of WP(C) no. 210 of 2012 in Namit Sharma case and observed that the shortlisting of persons done by it was in accordance with the judgement.


(Dr. S. K. SARKAR)
Secretary (Personnel)


(Ashok Thakur)
Secretary (Higher
Education)


(PULOK CHATTERJI)
Principal Secretary to
Prime Minister


(AJIT SETH)
CABINET SECRETARY

Eminence, Knowledge and Experience of empanelled persons

Annexure - D

Panels	S.No.	Name	Category	Knowledge, Eminence and Experience
<u>Panel - I</u>	1	Dr. Mrutyunjay Sarangi	Administration and Governance	Dr. Sarangi has done Doctorate in demography from USA and holds Post Graduate degree in Political Science, Bachelor in Laws and Business Administration Degree from IGNOU. He has vast experience in the field of Administration and Governance. He is also adept in Labour Laws and Policy, and Electoral Practices and Reforms. He is an IAS officer (TN 1977) and has held senior level posts in Centre and State for more than 30 years and is currently working as Secretary to Govt. of India, M/o Labour and Employment.
	2	Sanjeev Kumar Tripathi	Administration and Governance	Shri Tripathi is a post graduate in Mathematics from University of Allahabad and also holds a Diploma in French from GND University, Amritsar. He is an IPS officer of 1972 Batch UP Cadre officer (Joined RAS in 1998) and has 40 years of experience in various roles in Govt. He has served in Apex scale in GOI for 6 years which included 2 years as R&AW and 3 years as head of Aviation Research Centre. Shri Tripathi has also broad knowledge in the fields of Law and Science & Technology. He was awarded Indian Police Medal in 1991 and the Sarvotam Seva Praman Patra in 2003 besides many commendations for outstanding work. His area of expertise is in the field of Administration and Governance. Shri Tripathi retired as Secretary (R), Cabinet Secretariat on December 30, 2012.
	3	Shri Yashvardhan Azad	Administration and Governance	Shri Azad, a Post Graduate in Economics from Delhi School of Economics also holds a Masters Degree in Management from Asian Institute of Management, Manila. An IPS officer of Madhya Pradesh Cadre (1976) has worked in various Security and Intelligence organisations in his carrier spanning over more than 35 years. He is recipient of Indian Police Medal for meritorious service in 1994 and the President's Police Medal for distinguished service in 2002. Shri Azad has vast experience in Administration and Governance and currently holds the post of Secretary (Security), Cabinet Secretariat.

Panels	S.No.	Name	Category	Knowledge, Eminence and Experience
Panel - II	1	Shri Girish Chandra Chaturvedi	Administration and Governance	Shri Chaturvedi is a Post Graduate in Physics from University of Allahabad and in Economics and Social Policy Planning in developing countries from London School of Economics. Shri Chaturvedi an IAS officer of UP Cadre of 1977 batch during his more than 35 years of service has held various positions in Central Govt. and the state of UP. He has extensive experience and specialisation in Energy, Planning, Finance and Accounts, Medical and Textiles. His area of eminence is Administration and Governance.
	2	Shri Sharat Sabharwal	Administration and Governance	Shri Sabharwal, a Post Graduate in Political Science from Gurunanak Dev University, Punjab joined Indian Foreign Service in July 1975 and superannuated from it on 30.9.2012 as High Commissioner of India to Pakistan. He was thereafter re-employed and his extended tenure was upto 30.6.2013. During his 38 years (approx.) of Foreign service he has served in various embassies of India/ High Commissions such as Paris, Mauritius, Geneva, Medagascar, Uzbekistan etc. During these 38 years he has learnt Foreign Relations, Administrative and Financial aspects of working of the Govt. He is eminent in the field of Administration and Governance.
	3	Ms. Sheila Sangwan	Administration and Governance	Ms. Sangwan a Post Graduate in Economics from Delhi School of Economics also holds Masters Degree in Public Administration from University of Washington and is also a Bachelor of Law from University of Delhi. An officer of Indian Revenue Service (Customs and Central Excise) - 1976 batch is currently Ex-officio Special Secretary to GOI in Department of Revenue, Ministry of Finance. During 37 years of her service in Govt., she has worked in various Ministries/Departments and has exposure ranging from Tax Administration, Policy formulation, General Administration and Finance. Her eminence is in the field of Administration and Governance.
	4	Ms. Sandhya Baliga	Administration and Governance	Ms. Baliga holds M.Phil Degree in Public Administration. An officer of Indian Revenue Service (Customs and Central Excise) - 1976 batch is currently working as Special Secretary & Member, Central Board of Excise & Customs, Department of Revenue, Ministry of Finance. During 37 years of her service in Govt., she has worked in various Ministries and has exposure ranging from Indirect Taxation, Personal & Vigilance Administration, Legal & Appellate Remedies in Customs, Central Excise & Service Tax to Ethics and Governance. She has also brought out several booklets to sensitize officers e.g 'Do' & 'Don't' as regards handling vigilance cases, Manual on 'Infrastructure', a Monthly Newsletter 'Vidhi-Vata' and a Quarterly Publication 'ECS Law Reporter'. Ms. Baliga has aquired expertise in the field of Administration and Governance.

Panels	S.No.	Name	Category	Knowledge, Eminence and Experience
<u>Panel - III</u>	1	Ms. Manjula Prasher	Administration and Governance	Ms. Prasher, a Post Graduate in History from Punjab University also holds Diploma in French Language and a Certificate Course in German Language. She belongs to 1976 batch of Indian Postal Service (Group A). During his more than 15 years service in higher grade in Postal Department in Central Govt. and State Govt., she was instrumental in monitoring of RTI applications and strengthening of public grievance settlement mechanism in Department of Posts. During her tenure as Member (O), Post Offices were made IT enabled and the Mail Network Optimisation Project got National e-governance award for the year 2012-13 under the category "Outstanding Performance in Citizen-centric Service Delivery". Her area of expertise lies in the field of Administration and Governance. Ms. Prasher retired on superannuation on 31.1.2013 as Secretary to GOI, Department of Posts, Ministry of Communication and Information Technology.
	2	Shri Pradeep Kumar Misra	Administration and Governance	Shri Misra is a Post Graduate from Delhi School of Economics and belongs to 1976 (UP) batch of the Indian Administrative Service. Shri Misra worked in various capacities in State Govt. and Central Govt. and acquired expertise in Industrial Finance, Health and Education, National Security Issue and Geo Politics. He also advised the Appointments Committee of the Cabinet on appointment on key posts. Shri Misra has experience in the field of Administration and Governance. He retired on superannuation on 30th June, 2013 as Secretary Personnel, Department of Personnel and Training. During his stint of one and half years in DoPT, the Nodal Department for RTI Act, 2005, he monitored the implementation of RTI Act, issue of suo-motu declarations guidelines and launch of RTI online facility. He was instrumental in propagation of RTI throughout the country.
	3	Ms. Vibha Puri Das	Administration and Governance	Ms. Das, a Post Graduate in Political Science from Jawahar Lal Nehru University also holds a certificate course in Leadership in Administration from Kennedy School, Howard University and a Certificate Course in International Approaches to Rural Development and Poverty Alleviation in Institute of Development Studies, Sussex, U.K. She is an officer of Indian Administrative Service, 1976 batch, Uttaranchal cadre. During 37 years of service she has worked at various levels in the GOI, State Govts. of Uttar Pradesh and Uttarakhand. She has worked for 4 years as Secretary in GOI in 2 important Ministries of HRD and Tribal Affairs. For the purpose of developing a Human Rights Curriculum for university education she has documented home based workers work of SEWA. She has also documented convergence strategies for elimination of child labour and guaranteeing rights of the child, in association with National Labour Institute, NOIDA as part of a UNICEF assisted study. Ms. Das has vast experience in Administration and Governance is currently Secretary to the GOI, M/o Tribal Affairs.

Panels	S.No.	Name	Category	Knowledge, Eminence and Experience
Panel - IV	1	Dr. Brahm Aytar Agrawal	Law	Dr. Agrawal obtained his Doctorate in Law from University of Delhi. He also holds PG. Diploma in International Law and Diplomacy, Journalism and Diploma in French, a certificate in Forensic Science and also a certificate in Urdu language. Dr. Agrawal is a member of Indian Legal Service since 1983. Shri Agrawal started his carrier as an Advocate on both the Civil and Criminal sides of the Bar at Delhi from July 1974 to October 1980. During his tenure of more than 32 years in Govt., he has worked for Govt. of NCT of Delhi, Department of Legal Affairs, Legislative Department and Law Commission of India in various capacities. He has long experience of working at Senior Executive position in the fields of Legal Advise, Legislative Drafting, Negotiation of International Treaties, Preparation of Law Commission reports etc. His specialisation includes Human Rights, Parliamentary matters, Constitutional, Administrative, Criminal, Civil, Labour, Service, Election and Economic Laws etc. Dr. Agrawal is currently employed as Law Secretary, M/o Law and Justice, New Delhi.
	2	Shri M.A. Khan Yusufi	Law	Shri Yusufi, a graduate in Law from Aligarh Muslim University (1973) enrolled himself as an advocate in Uttar Pradesh and Practiced for 6 years from 1974-1979 in various courts of Law in Criminal, Civil and Revenue side. In 1979, Shri Yusufi joined Central Govt. He was selected through UPSC as Assistant Legal Advisor (Grade-IV of Indian Legal Service) in August 1988. Since then he worked in various capacities relating to Law. He was promoted as Joint Secretary and Legal Advisor (Grade-I of ILS) w.e.f. 3.3.2006 and tendered legal advice to various Ministries/Departments on different aspects of various laws. He was also Chief Vigilance Officer in Ministry of Law and Justice from 2006-2011. After his retirement in December, 2011 as Joint Secretary and Legal Advisor, M/o Law and Justice Shri Yusufi is working as Chairperson Airport Appellate Tribunal under M/o Civil Aviation. Shri Yusufi is an eminent personality in the field of Law.
	3	Shri Sunil Kumar Chaudhary	Law	Shri Chaudhary, a Bachelor of Law is practising law since 1994 and is also working for the welfare of handicapped persons. He also worked as Standing Counsel. Additional Govt. Advocate for state of U.P. in Allahabad High Court, Lucknow Bench, Lucknow. He completed his tenure of 5 years as State Information Commissioner, Uttar Pradesh on 12.7.2012. His area of expertise is Law.

Panels	S.No.	Name	Category	Knowledge, Eminence and Experience
<u>Panel - V</u>	1	Dr. Anuradha Verma	Social Service	Dr. Verma did her Doctorate in Zoology from Barkatullah University Bhopal. Dr. Verma has co-authored a book titled "Right to Information - Law and Practice" and is currently working on a "RTI case digest" based on an exhausted study on RTI judgements by different authorities. She writes a weekly column on the website whispersinthecorridors.com since 2008 and also started in 2011 a website www.rtifoundationofindia.com . A social activist, Dr. Verma was also shortlisted for the post Information Commissioner in the CIC during the last round of selection. At present she is working as RTI consultant to IIM, Indore.
	2	Shri Madabhushi Sridhar Acharyulu	Law	Shri Acharyulu is a professor of Law and Chairman for Centre for Post Graduate Legal Studies, NALSAR University of Hyderabad. He has also completed his Masters in Journalism. He has authored 30 books on various subjects such as Right to Information, Law of expression, ADR, Law of Torts etc. and several articles on Right to Information both in English and Telugu. He was also a resource person to train Information Commissioners at National Law School of India, Bangluru and Centre for Good Governance, Hyderabad in recent years. He has experience in teaching law for more than two decades preceded by experience in journalism for 15 years.
	3	Shri Satya Parkash	Journalism	Shri Parkash, a Post Graduate in Mass Communication also holds a Degree in Law, and is currently working as Legal Editor, Hindustan Times, New Delhi. After working with a Delhi based NGO for one year, he started his journalistic carrier in September, 1996 with the Press Trust of India and covered Delhi Courts, tribunals and Commissions of enquiry for almost 10 years. In August, 2006, Shri Satya Prakash moved to Hindustan Times. As a legal journalist, his job was mainly to explain to the readers a complex judgement in simple and lucid manner. He is also a visiting faculty at Indian Institute of Mass Communication, Times School of Journalism and Delhi University. He has been conferred with Dr. Shankar Dayal Singh memorial trophy for unique contribution in the field of Legal Journalism in English print media.

Declarations and directions of the Supreme Court in its judgement dated 03/09/2013 in Review petition in Namit Sharma Case

"Under Order XL of the Supreme Court Rules, 1966 this Court can review its judgment or order on the ground of error apparent on the face of record and on an application for review can reverse or modify its decision on the ground of mistake of law or fact. As the judgment under review suffers from mistake of law, we allow the Review Petitions, recall the directions and declarations in the judgment under review and dispose of Writ Petition (C) No. 210 of 2012 with the following declarations and directions:

- (i) We declare that Sections 12(5) and 15(5) of the Act are not *ultra vires* the Constitution.
- (ii) We declare that Sections 12(6) and 15(6) of the Act do not debar a Member of Parliament or Member of the Legislature of any State or Union Territory, as the case may be, or a person holding any other office of profit or connected with any political party or carrying on any business or pursuing any profession from being considered for appointment as Chief Information Commissioner or Information Commissioner, but after such person is appointed as Chief Information Commissioner or Information Commissioner, he has to discontinue as Member of Parliament or Member of the Legislature of any State or Union Territory, or discontinue to hold any other office of profit or remain connected with any political party or carry on any business or pursue any profession during the period he functions as Chief Information Commissioner or Information Commissioner.
- (iii) We direct that only persons of eminence in public life with wide knowledge and experience in the fields mentioned in Sections 12(5) and 15(5) of the Act be considered for appointment as Information Commissioner and Chief Information Commissioner.
- (iv) We further direct that persons of eminence in public life with wide knowledge and experience in all the fields mentioned in Sections 12(5) and 15(5) of the Act, namely, law, science and technology, social service, management, journalism, mass media or administration and governance, be considered by the Committees under Sections 12(3) and 15(3) of the Act for appointment as Chief Information Commissioner or Information Commissioners.
- (v) We further direct that the Committees under Sections 12(3) and 15(3) of the Act while making recommendations to the President or to the Governor, as the case may be, for appointment of Chief Information Commissioner and Information Commissioners must mention against the name of each candidate recommended, the facts to indicate his eminence in public life, his knowledge in the particular field and his experience in the particular field and these facts must be accessible to the citizens as part of their right to information under the Act after the appointment is made.

(vi) We also direct that wherever Chief Information Commissioner is of the opinion that intricate questions of law will have to be decided in a matter coming up before the Information Commission, he will ensure that the matter is heard by an Information Commissioner who has wide knowledge and experience in the field of law."

Pages 135-319

Pages No. **135-319** contain list of 422 applicants alongwith their Educational Qualifications, Addresses and other particulars and CVs of shortlisted candidates (Annexure 'E') as referred to on page 121. All these informations are personal in nature and exempt from disclosure under Section 8(i)(j).

F.No.4/3/2013-IR
Government of India
Department of Personnel & Training
IR Section

North Block, New Delhi
Dated : 8th November, 2013

Subject: Meeting under the Chairmanship of Prime Minister at 10.30 a.m on 10th November 2013 at 7, RCR, New Delhi

A meeting of the Selection Committee for the post of Information Commissioners in the Central Information Commission will be convened under the Chairmanship of Hon'ble Prime Minister at 10.00 a.m on 10th November 2013 at 7, Race Course Road, New Delhi. It is requested that necessary arrangements may kindly be made for the entry of the following officers on that day, as they would be present in connection with the meeting.

- | | | | |
|-----|------------------|------------------------|-----------------------------------|
| I. | Dr. S.K. Sarkar, | Secretary (Personnel) | Vehicle No. DL 2C Q 4477 (SX-4) |
| II. | Shri Manoj Joshi | Joint Secretary (AT&A) | Vehicle No. DL 2C Q 5852 (Accent) |

2. It is also requested that they may be allowed to carry pen drives along with them.



(R.K. Girdhar)
Under Secretary to the Govt. of India
Email-ID – usrti-dopt@nic.in
Telefax No. 23093022
Mb. No. 9650219852

To

Private Secretary to PM
Prime Minister's Residence
7, Race Course Road
New Delhi

Fax: 011-23017429

TEL 23018929 - 27/11/13

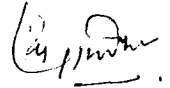
F.No. 4/3/2013-IR
Government of India
Department of Personnel & Training
IR Section

North Block, New Delhi
Dated: 8th November, 2013

**Sub: Meeting under the Chairmanship of Prime Minister at 10.30 AM
on 10th November, 2013 at 7, RCR, New Delhi**

In partial modification of the communication of even number dated 8th November, 2013 on the above subject, it is to state that Dr. S.K. Sarkar, Secretary (Personnel) will be travelling by vehicle No. **DL 10C B 4477 (SX 4)** instead of DL 2C Q 4477(SX 4) as indicated in the previous communication.

This correction may kindly be noted.



(R.K. Girdhar)

Under Secretary to the Government of India

Email-ID-usrti-dopt@nic.in

Telefax No. 23093022

Mb No. 9650219852

To

Private Secretary to PM
Prime Minister's Residence
7, Race Course Road
New Delhi

(Fax: 011-23017429)

(322)

No. 4/3/2013-IR
Government of India
Ministry of Personnel, Public Grievance and Pensions
Department of Personnel and Training

North Block, New Delhi
Dated 07.11.2013

To

Principal Secretary,
Sh. K.N. Bhat
Ajay Kumar
Election Commission of India
Nirvachan Sadan, Ashoka Road,
New Delhi-110001.

Subject: Application of Model Code of Conduct – General Election to the Legislative Assemblies of Delhi, Rajasthan, Madhya Pradesh, Mizoram and Chhattisgarh.

Sir,

The Government is in the process of appointment of Information Commissioners(s) in the Central Information Commission at Delhi. The Central Information Commission is a statutory organisation.

2. The Right to Information Act, 2005 mandates constitution of a Central information Commission (CIC), consisting of the Chief Information Commissioner and such number of Information Commissioners not exceeding ten as may be deemed necessary. At present the Central Information Commissioner is assisted by only four Information Commissioners.

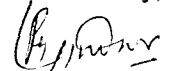
3. As per the Act, the appointment is made by the President on the recommendation of a Selection Committee comprising:

- (i) The Prime Minister- The Chairperson of the Committee;
- (ii) The Leader of Opposition in the Lok Sabha; and
- (iii) A Union Cabinet Minister nominated by the Prime Minister.

4. The Central Information Commission adjudicates on complaints and appeals received against Central Government Public Authorities. The State Information Commissions adjudicates on complaints and appeals in respect of the State Government Public Authorities.

5. The number of appeals and complaints are on increase in the Central Information Commission and the Commission is finding it difficult to cope up with the pendency with the existing number of Information Commissioners. You are, therefore, requested to give a 'no objection' to this Department by return fax for the selection of the persons(s) to be appointed for the posts of information Commissioner(s) in the Central Information Commission, New Delhi and notification thereof.

Yours faithfully,



(R.K. Girdhar)
Under Secretary (RTI)
Tele.No. 23092759
Telefax :2309 3022

23710221
(0)

Received

27/11 (D.K. Verma)
US.



(223)

CODE OF CONDUCT – DOs & DON'Ts

The Commission has issued various instructions on observance of code of conduct from time to time. Important aspects of the code of conduct are reiterated below:

On Welfare Schemes and Governmental Works:

1. Announcement of new projects or programme or concessions or financial grants in any form or promises thereof or laying of foundation stones, etc., which have the effect of influencing the voters in favour of the party in power is prohibited.
2. These restrictions apply equally to new schemes and also ongoing schemes. But it does not mean that in the case of national, regional and State utility schemes, which have already been brought up to the stage of completion, their utilization or functioning in public interest should be stopped or delayed. The coming into force of the Model Code of Conduct cannot be given as an excuse for not commissioning such schemes or allowing them to remain idle. At the same time, it should be ensured that the commissioning of such schemes is done by civil authority and without associating political functionaries and without any fanfare or ceremonies whatever, so that no impression is given or created that such commissioning has been done with a view to influencing the electorate in favour of the ruling party. If in doubt, a clarification should be obtained from Chief Electoral Officer/Election Commission of India.
3. **It is further clarified that simply because a budget provision has been made for any particular scheme or the scheme has been sanctioned earlier or a reference to the scheme was made in the address of the Governor or the budget speech of the Minister it does not automatically mean that such schemes can be announced or inaugurated or otherwise taken up after the announcement of elections while the Model Code of conduct is in operation, since they will clearly be intended to influence the voters. Such actions if undertaken will be considered a violation of the model code of conduct.**
4. No fresh sanctions for governmental schemes should be made. Review by political executive (Ministers etc.) and processing of beneficiary oriented schemes, even if ongoing, should be stopped till completion of elections. No fresh release of funds on welfare schemes and works should be made or contract for works awarded in any part of the state where election is in progress without prior permission of the Commission. This includes works under the Member of Parliament (including Rajya Sabha members) Local Area Development fund or MLAs / MLCs Local Area Development Fund, if any such scheme is in operation in the state.
5. **No work shall start in respect of which even if work orders have been issued before the model code came into effect, if the work has actually not started in the field. These works can start only after the completion of election process. However, if a work has actually started, that can continue.**
6. There shall be no bar to the release of payments for completed work(s) subject to the full satisfaction of the concerned officials.

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7. Commission does not refuse approval for schemes undertaken for tackling emergencies or unforeseen calamities like providing relief to people suffering from drought, floods, pestilences, other natural calamities or welfare measures for the aged, infirm etc. In these matters, however, prior approval of the Commission should be taken and all ostentatious functions should be strictly avoided and no impression should be given or allowed to be created that such welfare measures or relief and rehabilitation works are being undertaken by the Government in office so as to influence the electors in favour of the party in power which at the same time will adversely affect the prospects of the other parties.

8. Tenders are not to be finalised during the period of elections.

9. Grant or leasing of Government land is completely banned till the completion of election process

On Transfers and Posting of Officials:

The Commission directs that there shall be a total ban on the transfer of all officers/officials connected with the conduct of the election. These include but are not restricted to:-

- (i) The Chief Electoral Officer and Additional/Joint/Deputy Chief Electoral Officers;
- (ii) Divisional Commissioners;
- (iii) The District Election Officers, Returning Officers, Assistant Returning Officers and other Revenue Officers connected with the Conduct of Elections;
- (iv) Officers of the Police Department connected with the management of elections like range IGs and DIGs, Senior Superintendents of Police and Superintendents of Police, Sub-divisional level Police Officers like Deputy Superintendents of Police and other Police officers who are deputed to the Commission under section 28A of the Representation of the People Act, 1951;
- (v) Other officers drafted for election works like sector and zonal officers, Transport cell, EVM cell, Poll material procurement & distribution cell, Training cell, Printing Cell etc. Senior officers, who have a role in the management of election in the State, are also covered by this direction.
- (vi) The transfer orders issued in respect of the above categories of officers prior to the date of announcement but not implemented till the time when model code came into effect should not be given effect to without obtaining specific permission from the Commission.
- (vii) **This ban shall be effective till the completion of the election process.**
- (viii) In those cases where transfer of an officer is considered necessary on account of administrative exigencies, the State Government may, with full justification, approach the Commission for prior clearance.
- (ix) **No appointments or promotions in Government / Public Undertakings shall be made during this period, without prior clearance of the Commission.**

On Misuse of Official Machinery:

1. Official vehicles cannot be used for electioneering work. 'Official Vehicles' include all vehicles belonging to the -

- Central Government,
- State Government,
- Public Undertakings of the Central and State Government,
- Joint Sector Undertakings of Central and State Government,
- Local Bodies, Municipal Corporations, Municipalities,
- Marketing Boards (by whatever name known),
- Cooperative Societies,
- Autonomous District Councils, or
- Any other body in which public funds, howsoever small a portion of the total, are invested, and also
- Vehicles belonging to the Ministry of Defense and the Central Police Organizations under the Ministry of Home Affairs and State Governments.

2. It is open for a Minister of the Union or State to make private visits using his or her private vehicle(s). For such private visits, the official personal staff of the ministers shall not accompany them. However, if a Minister is traveling in some emergent situation, out of his HQ on purely official business, **which cannot be avoided in public interest**, then a letter certifying to this effect should be sent from the Secretary concerned of the Department to the Chief Secretary of the state where the Minister intends to visit, with a copy to the Commission. During such tour, the Chief Secretary may provide the Minister with Government vehicle and accommodation and other usual courtesies for his official trip. However, immediately preceding or during or in continuation of such an official tour, no minister can carry out or combine any election campaign or political activity. The Commission will keep watch on such arrangements in due consultation with its Chief Electoral Officer.

3. No Minister, whether of union or state, will summon any election related officer of the constituency or the State, for any official discussions during the period of elections commencing with the announcement of the elections. **Only exception will be when a Minister, in his capacity as in charge of the department concerned, or a Chief Minister undertakes an official visit to a constituency, in connection with failure of law and order or a natural calamity or any such emergency which requires personal presence of such Ministers/Chief Ministers for the specific purpose of supervising review/salvage/relief and such like purpose.**

4. Ministers are entitled to use their official vehicles only for commuting from their official residence to their office for official work provided that such commuting is not combined with any electioneering or any political activity.
5. Ministers, whether of the Union or State, shall not combine in any manner their official tours with election work.
6. Whether on a private or official visit, no pilot car(s) or car(s) with beacon lights of any colour or car(s) affixed with sirens of any kind shall be used by any political functionary, even if the State administration has granted him a security cover requiring presence of armed guards to accompany him on such visit. This is applicable whether the vehicle is government owned or private owned.
7. Any official who meets the Minister on his private visit to the constituency where elections are being held shall be guilty of misconduct under the relevant service rules; and if he happens to be an official mentioned in Section 129 (1) of the Representation of People Act, 1951, he shall also be additionally considered to have violated the statutory provisions of that Section and liable to penal action provided thereunder.
8. Meeting of Municipal Corporation, Nagar Panchayat, Town Area Committee, Boards, corporations etc. can be convened provided that at such meetings only the matters of routine nature relating to day-to-day administration may be taken up and not the matters relating to policies, programmes, works, tenders, appointments etc.
10. No advertisement can be published regarding achievements of the party/Government in power at cost of public exchequer. Existing hoardings and boards depicting department's programmes or achievements need to be removed or completely covered.
11. All references to Ministers, Politicians or Political parties on Government's official websites, shall be taken off/purged off.

NOTE:

The above list of Dos and Don'ts is only illustrative and not exhaustive and is not intended to substitute any other detailed orders, directions/instructions on the above subjects, which must be strictly observed and followed.

* * * *

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By Special Message



भारत निर्वाचन आयोग सचिवालय
SECRETARIAT OF THE ELECTION COMMISSION OF INDIA

निर्वाचन सदन, अशोक रोड, नई दिल्ली-110001

Nirvachan Sadan, Ashoka Road, New Delhi-110001.

वेबसाइट / Website: www.eci.nic.in ई-मेल E-mail: kakumar@eci.gov.in फोन/Phone: 011-23710221 फैक्स / FAX: 011-23710222

No.437/6/CG/2013-CC&BE

Dated: 9th November, 2013

To

The Secretary to the Government of India
Ministry of Personnel, Public Grievances & Pensions,
Department of Personnel and Training,
North Block,
New Delhi.

[Kind attn: Shri R.K. Giridhar, Under Secretary (RTH)]

Subject: Application of Model Code of Conduct – General Election to the Legislative Assemblies of Delhi, Rajasthan, Madhya Pradesh, Mizoram and Chhattisgarh regarding.

Sir,

I am directed to refer to your Ministry's letter No 4/3/2013-IR dated 7th November, 2013, on the subject cited above, and to state that the Commission has no objection for the selection for appointment for the posts of Information Commissioner(s) in the Central Information Commission, New Delhi and notification thereof.

Yours faithfully,

(K. Ajaya Kumar)
Principal Secretary

MINUTES OF THE MEETING OF THE SELECTION COMMITTEE HELD ON 10th NOVEMBER, 2013 AT 7, RACE COURSE ROAD, NEW DELHI FOR MAKING RECOMMENDATIONS FOR APPOINTMENT OF INFORMATION COMMISSIONERS IN THE CENTRAL INFORMATION COMMISSION.

The Committee constituted under Section 12 (3) of the Right to Information Act, 2005 met under the Chairmanship of the Hon'ble Prime Minister at 10.30 am on 10.11.2013 at 7, Race Course Road, New Delhi. The Committee considered the proposal for the appointment of Information Commissioners in the Central Information Commission.

2. The Committee perused the detailed agenda including the process involved in the search procedure for short-listing and preparation of panels for consideration. The names suggested in the panels by the Search Committee were evaluated on the basis of the width, diversity, relevance and length of experience of the applicant, with some preference for legal background and strategic exposure. The Committee also considered the inputs received from the Intelligence Bureau, CBI and the concerned Cadre Controlling Authorities in respect of the names suggested by the Search Committee. A list of the names in the said panels is annexed as **Annexure-I**. The Committee also considered the directions of the Hon'ble Supreme Court in its judgment dated 03.09.2013 in Review Petition no. 2309/2012 in the matter of Namit Sharma vs. UOI.

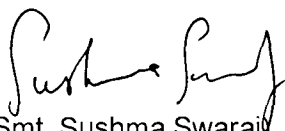
3. After taking into account the relevant factors, the Committee recommended the following names for appointment as Information Commissioners in the Central Information Commission:-

- (I) Shri Yashvardhan Azad
- (II) Shri Sharat Sabharwal
- (III) Ms. Manjula Prasher
- (IV) Shri M.A.Khan Yusufi
- (V) Shri Madabhushi Sridhar Acharyulu

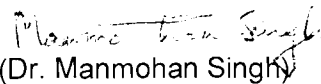
4. The eminence in public life, knowledge and experience in the respective field in respect of each name mentioned above, are annexed as **Annexure-II**.



(Sh. Kapil Sibal)
Minister of Law and Justice



(Smt. Sushma Swaraj)
Leader of the Opposition
In the Lok Sabha



(Dr. Manmohan Singh)
Prime Minister

New Delhi, 10th November, 2013

ANNEXURE – I

List of the names of persons suggested by Search Committee

PANEL I

- (I) Dr. Mrutyunjay Sarangi
- (II) Shri Sanjeev Kumar Tripathi
- (III) Shri Yashvardhan Azad

PANEL II

- (I) Shri Girish Chandra Chaturvedi
- (II) Shri Sharat Sabharwal
- (III) Ms. Sheila Sangwan
- (IV) Ms. Sandhya Baliga

PANEL III

- (I) Ms. Manjula Prasher
- (II) Shri Pradeep Kumar Misra
- (III) Ms. Vibha Puri Das

PANEL IV

- (I) Dr. Brahm Avtar Agrawal
- (II) Shri M.A.Khan Yusufi
- (III) Shri Sunil Kumar Chaudhary

PANEL V

- (I) Dr. Anuradha Verma
- (II) Shri Madabhushi Sridhar Acharyulu
- (III) Shri Satya Prakash

S.No.	Name	Category	Eminence in public life, Knowledge and Experience
1	Shri Yashvardhan Azad	Administration and Governance	Shri Azad, a Post Graduate in Economics from Delhi School of Economics also holds a Masters Degree in Management from Asian Institute of Management, Manila. An IPS officer of Madhya Pradesh Cadre (1976) has worked in various Security and Intelligence organisations in his career spanning over more than 35 years. He is recipient of Indian Police Medal for meritorious service in 1994 and the President's Police Medal for distinguished service in 2002. Shri Azad has vast experience in Administration and Governance and currently holds the post of Secretary (Security), Cabinet Secretariat.
2	Shri Sharat Sabharwal	Administration and Governance	Shri Sabharwal, a Post Graduate in Political Science from Gurunanak Dev University, Punjab joined Indian Foreign Service in July 1975 and superannuated from it on 30.9.2012 as High Commissioner of India to Pakistan. He was thereafter re-employed and his extended tenure was upto 30.6.2013. During his 38 years (approx.) of Foreign service he has served in various embassies of India/ High Commissions such as Paris, Mauritius, Geneva, Madagascar, Uzbekistan etc. During these 38 years he has learnt Foreign Relations, Administrative and Financial aspects of working of the Govt. He is eminent in the field of Administration and Governance.
3	Ms. Manjula Prasher	Administration and Governance	Ms. Prasher, a Post Graduate in History from Punjab University also holds Diploma in French Language and a Certificate Course in German Language. She belongs to 1976 batch of Indian Postal Service. During her more than 15 years service in higher grade in Postal Department in Central Govt. and State Govt., she was instrumental in monitoring of RTI applications and strengthening of public grievance settlement mechanism in Department of Posts. During her tenure as Member (O), Post Offices were made IT enabled and the Mail Network Optimisation Project got National e-governance award for the year 2012-13 under the category "Outstanding Performance in Citizen-centric Service Delivery". Her area of expertise lies in the field of Administration and Governance. Ms. Prasher retired on superannuation on 31.1.2013 as Secretary to Government of India, Department of Posts, Ministry of Communication and Information Technology.

S.No.	Name	Category	(381) Eminence in public life, Knowledge and Experience
4	Shri M.A. Khan Yusufi	Law	Shri Yusufi, a graduate in Law from Aligarh Muslim University (1973) enrolled himself as an advocate in Uttar Pradesh and practiced for 6 years from 1974-1979 in various courts of Law in Criminal, Civil and Revenue side. In 1979, Shri Yusufi joined Central Govt. He was selected through UPSC as Assistant Legal Advisor (Grade-IV of Indian Legal Service) in August 1988. Since then he worked in various capacities relating to Law. He was promoted as Joint Secretary and Legal Advisor (Grade-I of ILS) w.e.f. 3.3.2006 and tendered legal advice to various Ministries/Departments on different aspects of various laws. He was also Chief Vigilance Officer in Ministry of Law and Justice from 2006-2011. After his retirement in December, 2011 as Joint Secretary and Legal Advisor, M/o Law and Justice Shri Yusufi is working as Chairperson Airport Appellate Tribunal under M/o Civil Aviation. Shri Yusufi is an eminent personality in the field of Law.
5	Shri Madabhushi Sridhar Acharyulu	Law	Shri Acharyulu is a professor of Law and Chairman for Centre for Post Graduate Legal Studies, NALSAR University of Hyderabad. He has also completed his Masters in Journalism. He has authored 30 books on various subjects such as Right to Information, Law of expression, ADR, Law of Torts etc. and several articles on Right to Information both in English and Telugu. He was also a resource person to train Information Commissioners at National Law School of India, Bangluru and Centre for Good Governance, Hyderabad in recent years. He has experience in teaching law for more than two decades preceded by experience in journalism for 15 years.

MANOJ JOSHI

Joint Secretary (AT&A)

Phone: 2309 3668

Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001

D.O. No. 4/3/2013-IR

Dated: 18th November, 2013

Dear *Shri Yashvardhan Azad*

I am happy to inform you that you have been selected for appointment as Information Commissioner in the Central Information Commission. You are requested to confirm that offer of appointment as Information Commissioner in the Central Information Commission is acceptable to you.

2. Terms of appointment in the Commission will be regulated in accordance with the provisions of the Right to Information Act, 2005.

3. Section 12 (6) of the RTI Act, 2005 provides that the Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of Legislature of any State or Union Territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. If you are associated with any other office/organization in any capacity which is otherwise debarred / prohibited under the above Act, it would be necessary for you to resign therefrom before appointment as Information Commissioner in the Central Information Commission.

With Regards

Yours sincerely,

Manoj Joshi

(Manoj Joshi)

Shri Yashvardhan Azad
C-I/7, Pandara Park
New Delhi-110003

*Received
18/11/13
PSTO Secy (S)*



MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001

D.O. No. 4/3/2013-IR

Dated: 18th November, 2013

Dear *Shri M A Khan Yusufi*

I am happy to inform you that you have been selected for appointment as Information Commissioner in the Central Information Commission. You are requested to confirm that offer of appointment as Information Commissioner in the Central Information Commission is acceptable to you.

2. Terms of appointment in the Commission will be regulated in accordance with the provisions of the Right to Information Act, 2005.

3. Section 12 (6) of the RTI Act, 2005 provides that the Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of Legislature of any State or Union Territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. If you are associated with any other office/organization in any capacity which is otherwise debarred / prohibited under the above Act, it would be necessary for you to resign therefrom before appointment as Information Commissioner in the Central Information Commission.

With Regards

Shri M.A. Khan Yusufi
Block 21, Flat – 84, Lodhi Colony
New Delhi – 110003

R.S. BISHT
R.S. BISHT
R.S.

Yours sincerely,

Manoj Joshi
(Manoj Joshi)



सूचना का
अधिकार

<http://persmin.gov.in>

By Spl. Messenger 22/11

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001
Dated: 18th November, 2013

D.O. No. 4/3/2013-IR

Dear *Ms Prasher*

I am happy to inform you that you have been selected for appointment as Information Commissioner in the Central Information Commission. You are requested to confirm that offer of appointment as Information Commissioner in the Central Information Commission is acceptable to you.

2. Terms of appointment in the Commission will be regulated in accordance with the provisions of the Right to Information Act, 2005.

3. Section 12 (6) of the RTI Act, 2005 provides that the Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of Legislature of any State or Union Territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. If you are associated with any other office/organization in any capacity which is otherwise debarred / prohibited under the above Act, it would be necessary for you to resign therefrom before appointment as Information Commissioner in the Central Information Commission.

With Regards

Yours sincerely,
Manoj Joshi
(Manoj Joshi)

Ms. Manjula Prasher
39, New Moti Bagh,
New Delhi - 110021
Email manjulaprasher@yahoo.com

C/O - R.N. Prasher

Room - 5, Haryana Bhawan

9



सूचना का
अधिकार

<http://persmin.gov.in>

By Spl. Messenger

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
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कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001
GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001
Dated: 18th November, 2013

D.O. No. 4/3/2013-IR

Dear *Shri Sabharwal*

I am happy to inform you that you have been selected for appointment as Information Commissioner in the Central Information Commission. You are requested to confirm that offer of appointment as Information Commissioner in the Central Information Commission is acceptable to you.

2. Terms of appointment in the Commission will be regulated in accordance with the provisions of the Right to Information Act, 2005.

3. Section 12 (6) of the RTI Act, 2005 provides that the Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of Legislature of any State or Union Territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. If you are associated with any other office/organization in any capacity which is otherwise debarred / prohibited under the above Act, it would be necessary for you to resign therefrom before appointment as Information Commissioner in the Central Information Commission.

With Regards

Yours sincerely,
Manoj Joshi
(Manoj Joshi)

Shri Sharat Sabharwal
48 -C, Aradhna Enclave, Sector 13,
R. K. Puram, New Delhi -110066
Email- sharatsab@gmail.com, sharats52@hotmail.com

Received
R.K. MISHRA
for
18/11/2013

9



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अधिकार

<http://persmin.gov.in>

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



By Speed Post
भारत सरकार
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GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS
NORTH BLOCK, NEW DELHI-110001
Dated: 18th November, 2013

D.O. No. 4/3/2013-IR

Dear *Shri Acharyulu*

I am happy to inform you that you have been selected for appointment as Information Commissioner in the Central Information Commission. You are requested to confirm that offer of appointment as Information Commissioner in the Central Information Commission is acceptable to you.

2. Terms of appointment in the Commission will be regulated in accordance with the provisions of the Right to Information Act, 2005.

3. Section 12 (6) of the RTI Act, 2005 provides that the Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of Legislature of any State or Union Territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession. If you are associated with any other office/organization in any capacity which is otherwise debarred / prohibited under the above Act, it would be necessary for you to resign therefrom before appointment as Information Commissioner in the Central Information Commission.

With Regards

Yours sincerely,

Manoj Joshi

(Manoj Joshi)

Shri Madabhushi Sridhar Acharyulu
Flat - 104, Jagadamba Apartments,
Gandhinagar, Hyderabad,
500080 A.P.
Email – professorsridhar@gmail.com

[Handwritten signature and stamp]



सूचना का
अधिकार

<http://persmin.gov.in>

PM-957092/Secy(P)/13
14/11/13 827

Out today/At once
Confidential

PRIME MINISTER'S OFFICE

**South Block,
New Delhi – 110 011**

**Subject: Appointment of Information Commissioners in the Central
Information Commission - reg**

Reference is invited to the proposal of the DoPT contained in the note dated 11.11.2013 at 15-16/n in the DoPT's File No. 4/3/2013-IR(Pt.) on the above subject.

2. The undersigned is directed to convey that the Prime Minister has signed the note and the same has been sent to the Hon'ble President for his approval.

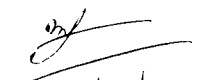
JS (ATAA)


(Dheeraj Gupta)
Joint Secretary to PM
Tel. No. 2301 5944

Secretary, Department of Personnel & Training

PMO ID no. 600/31/C/39/2013-ES.2

Dated. 13.11.2013


14/11/13

DTM (12)

18/11

Dispatch No. I/3550/104

MANOJ JOSHI
Joint Secretary (AT&A)
Phone: 2309 3668
Fax : 2309 4001



भारत सरकार
कार्मिक और प्रशिक्षण विभाग
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
नोर्थ ब्लॉक, नई दिल्ली-110001

GOVERNMENT OF INDIA
DEPARTMENT OF PERSONNEL & TRAINING
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES
AND PENSIONS

NORTH BLOCK, NEW DELHI-110001

Dated: 18th November, 2013

D.O. No. 4/3/2013-IR

Dear Sir

The Hon'ble President has approved the appointment of the following persons as Information Commissioners in the Central Information Commission, who have to be administered oath in terms of sub-section(3) of section 13 of the RTI Act, 2005 –

- (i) Shri Yashvardhan Azad
- (ii) Shri Sharat Sabharwal
- (iii) Ms. Manjula Prasher
- (iv) Shri M.A. Khan Yusufi
- (v) Shri Madabhushi Sridhar Acharyulu

2. Section 13(3) of the RTI Act, 2005 reads as follows:

"The Chief Information Commissioner or an Information Commissioner shall before he enters upon his office make and subscribe before the President or some other person appointed by him in that behalf, an oath or affirmation according to the form set out for the purpose in the First Schedule".

3. You are requested to kindly inform whether the Hon'ble President would please to administer oath to the above persons himself or would appoint some other person to administer oath to them.

4. In case the President pleases to appoint some other person to administer the oath, the name of that person may be informed. On the last occasion, the President had appointed the Central Chief Information Commissioner for the said purpose.

With Regards

Yours sincerely,

Manoj Joshi

(Manoj Joshi)

Dr. Thomas Mathew
Additional Secretary
Rashtrapati Bhavan
New Delhi



सूचना का
अधिकार

<http://persmin.gov.in>

Subject Re: offer of appointment
From Sridhar Acharyulu <professorsridhar@gmail.com>
Date Monday, November 18, 2013 2:13 pm
To "R.K.Girdhar" <usrti-dopt@nic.in>

229

To
Mr Manoj Joshi
Joint Secretary (AT & A)
Ministry of Personnel and Public Grievances and Pensions
Government of India.
New Delhi.
Dated: 18.11.2013

Dear Sir

I hereby acknowledge the receipt of your DO Letter No. 4/3/2013-IR, with thanks.

I am delighted with this selection and would like to thank all the authorities for reposing confidence in me. I accept the offer of appointment as Information Commissioner in the Central Information Commission.

I will be dispatching the hard copy of my letter soon.

Yours

M Sridhar Acharyulu

On 18 November 2013 13:02, R.K.Girdhar <usrti-dopt@nic.in> wrote:

Sir

Please see the attachment.

--
Regards

R.K.Girdhar
US-RTI
DOPT
Tel: 23092759

--
With regards,

Yours sincerely,

Dr.Madabhushi Sridhar, Professor
NALSAR University of Law, Justice City, Shameerpet,
R.R.District, Hyderabad - 500 078.
Tel:+91-40-23498206 (O), Fax:+91-8418-245174, Cell: 09490412108
<http://www.nalsar.ac.in>

Coordinator - Centre for Media Law & Public Policy, Centre for Criminal Justice Administration and Human Rights & Centre for Tribal and Land Rights at NALSAR

Co-Investigator – Global Internet Governance & Advocacy (GIGA) Project.

See www.indiacurrentaffairs.org, www.thehoot.org

Visit www.liiofindia.org – One stop free legal portal for Indian Laws & Treaties.

<https://mail.nic.in/uwc/webmail/print.html>

11/16/2013

Subject Fwd: Resignation Letter
 From Sridhar Acharyulu <professorsridhar@gmail.com>
 Date Wednesday, November 20, 2013 9:48 am
 To "R.K.Girdhar" <usrti-dopt@nic.in>

Dear Sir
 Please find the acceptance of my resignation by my Vice Chancellor.
 Sridhar

----- Forwarded message -----

From: **Prof.fazian Mustafa** <mustafa.fazian@gmail.com>
 Date: 20 November 2013 08:35
 Subject: Re: Resignation Letter
 To: Sridhar Acharyulu <professorsridhar@gmail.com>, Vk <vijenderkumar@yahoo.com>, NaAglaxmi <admissions@nalsar.ac.in>

Dear sir,
 I have accepted your resignation w.e.f 20th Nov. 2013 and in view of your long association with the university I have also waived the three month notice requirement.
 Wish u all the very best. Registrar would relieve you after completing necessary formalities.
 Regards
 Faizan

Sent from Samsung Mobile

----- Original message -----

From: Sridhar Acharyulu <professorsridhar@gmail.com>
 Date: 20/11/2013 08:14 (GMT+05:30)
 To: Faizan Mustafa <mustafa.fazian@gmail.com>, vc@nalsar.ac.in
 Subject: Resignation Letter

Dear Professor
 Thank you very much for your kind analysis and advice. I have attached the resignation letter.

I request you to accept my resignation and also to waive the condition of giving notice for relief. Please relieve me today and direct the office to issue me the letter of relief today itself, so that i can assume office of Information Commissioner at Center along with other personalities who were selected along with me.

Regards
 Sridhar
 Following is the text of my letter.

From:

M Sridhar Acharyulu

Professor of Law,

NALSAR University of Law

Dated 20th November 2013

To

The Vice Chancellor

 NALSAR University of Law

Hyderabad.

Sir,

Sub: *Appointment as Information Commissioner, at the Central Information Commission, request for acceptance of Resignation and waiving of notice period, Regd.*

Ref: *D O No 4/3/2013-IR from Ministry of Personnel, Public Grievances and Pensions, Government of India, New Delhi, Dated 18.11.2013 addressed to me.*

....

I am happy to inform you that I got selected for appointment as Information Commissioner in the Central Information Commission. I received offer of appointment vide letter referred above.

I have communicated my acceptance. The term of office is five years, and as per Right to Information Act, 2005, the Information Commissioner shall not pursue any profession. Hence, I am tendering my resignation herewith. I request you to accept and to bring it to effect from today itself.

I have been the member of faculty ever since the first recruitment happened in year 2000 and served the institution in different capacities for the last 14 years. My association with the University is long and thick. Hence, I request you to consider my case as an extraordinary one, and especially in view of this significant assignment, you may please waive the condition of giving notice.

I hope you would consider my request positively and give me the relieving orders. I thank you in advance.

Yours sincerely

957660/JS/1471913
19.11.13

(342)

Sharat Sabharwal,
48-C Aradhna Enclave,
Sector 13,
R.K. Puram,
New Delhi-110066.
Phone: 9990439773

E-mail: sharatsab@gmail.com, sharatsab52@hotmail.com

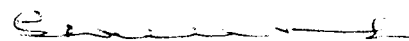
Dear Sharat Sabharwal,

I write with reference to your letter no. 4/3/2013-IR of November 18, 2013 regarding offer of appointment to me as Information Commissioner in the Central Information Commission. This is to confirm that the said appointment is acceptable to me.

I also confirm that I am a central government pensioner and am not holding any office or associated with any other office/organization in any capacity, which is debarred/prohibited under the Right to Information Act, 2005.

With regards,

Yours Sincerely,



(Sharat Sabharwal)

November 18, 2013.

Shri Manoj Joshi,
Joint Secretary (AT &A),
Department of Personnel and Training,
Ministry of Personnel, Public Grievances and Pensions,
North Block,
New Delhi-110001.

Dr. (IR) 
19/11/13
my
18/11/13

Subject Re: offer of appointment
From Sharat Sabharwal <sharatsab@gmail.com>
Date Monday, November 18, 2013 1:24 pm
To "R.K.Girdhar" <usrti-dopt@nic.in>

Dear Mr. Joshi,

I write with reference to your letter No.4/3/2013/IR of November 18, 2013 regarding offer of appointment to me as Information Commissioner in the Central Information Commission. This is to confirm that the said appointment is acceptable to me.

I also confirm that I am a central government pensioner and am not holding any office or associated with any office or organisation in any capacity which is debarred/prohibited under the Right to Information Act, 2005.

With my best wishes,
Sharat Sabharwal.
November 18, 2013.

To
Sh. Manoj Joshi,
Joint Secretary (AT&A),
Department of Personnel and Training,
Government of India,
New Delhi.

On Mon, Nov 18, 2013 at 12:44 PM, R.K.Girdhar <usrti-dopt@nic.in> wrote:

Sir

Please see the attachment

--

Regards

R.K.Girdhar
US-RTI
DOPT
Tel. 23092759

957658/2013/3114/4
19.11.13

(300)

From
Manjula Prasher

November 18, 2013.

Reference – Your letter regarding offer of appointment as Information Commissioner.

My dear Manoj

I am thankful for your d.o. letter number 4/3/2013-IR of November 18, 2013. I accept the offer of appointment as Information Commissioner in the Central Information Commission.

I confirm that I do not hold any office at present and that I am not connected with any political party, business or profession.

With best wishes

Sh. Manoj Joshi,
Joint Secretary (AT and A),
Deptt. of Personnel and Training,
Ministry of Personnel,
Public Grievances and Pensions,
Govt. of India,
New Delhi – 110001.

Sincerely,

Manjula
18/11/2013
(Manjula Prasher)

Former Secretary Deptt of Posts,
Govt. of India.
Telephone no. 0981847199

22. (JR)

19/11

12/11/13

YASHOVARDHAN AZAD



सत्यमेव जयते

सचिव (सुरक्षा) 365

मंत्रिमण्डल सचिवालय

नार्थ ब्लाक, नई दिल्ली

SECRETARY (SECURITY)

CABINET SECRETARIAT

158-C, NORTH BLOCK

NEW DELHI 110001

DO No. Secy(S)/2013-2445

Dated: November 18, 2013

Dear Shri Joshi,

Please refer to your DO No. 4/3/2013-IR dated 18.11.13 regarding my selection for appointment as Information Commissioner in the Central Information Commission.

I accept the offer of appointment as Information Commissioner in the Central Information Commission.

I am an IPS officer holding the post of Secretary (Security), Cabinet Secretariat, Government of India, New Delhi. I may be deemed to have retired from the service with effect from the date of my appointment as Information Commissioner in the Central Information Commission in terms of DoPT OM No. 3/15/99-Estt.(PayII) dated 18.11.1999. A copy of communication to this effect to the Ministry of Home Affairs is enclosed.

VS(RTI)

Dir(CIT)

my
19/11/13

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19/11

Respectfully,
Yours sincerely,

(Yashovardhan Azad)

Shri Manoj Joshi,
Joint Secretary (AT&A),
Govt. of India,
Department of Personnel & Training,
New Delhi

Encl: as above

YASHOVARDHAN AZAD



सचिव (सुरक्षा) 346

मंत्रिमण्डल सचिवालय

नार्थ ब्लॉक, नई दिल्ली

SECRETARY (SECURITY)

CABINET SECRETARIAT

158-C NORTH BLOCK

NEW DELHI-110001

DO No. Secy(S)/2013

Dated: November 18, 2013

Dear Shri Goswami,

Subject: Deemed retirement consequent upon appointment as Information Commissioner – reg.

I have accepted the offer of appointment as Information Commissioner in the Central Information Commission, New Delhi. I am a Member of Indian Police Service (MP: 1976) and presently posted as Secretary (Security), Cabinet Secretariat, Government of India, New Delhi. I may be deemed to have retired from the service with effect from the date of my appointment as Information Commissioner in the Central Information Commission. (DoPT OM No. 3/15/99-Estt.(PayII) dated 18.11.1999 may be referred to in this regard). My retirement may be under Rule 5A(1) of the All India Service (Death-cum-Retirement Benefits) Rules, 1958 so as to enable me to draw all the admissible retirement benefits for the service I have served as IPS, from the date I take over the charge of Information Commissioner

Regards,

Yours sincerely,

(Yashovardhan Azad)

**Shri Anil Goswami,
Union Home Secretary,
Ministry of Home Affairs,
Government of India,
New Delhi**

Copies for kind information (along with enclosure) to:

- 1. The Cabinet Secretary, Cabinet Secretariat, Government of India, New Delhi.**
- 2. Joint Secretary (Police-I), Ministry of Home Affairs, New Delhi for necessary action.**

Secretary (Security)

957557/2013/YS(AT&A)
18/11/2013



AIRPORT APPELLATE TRIBUNAL

Safdarjung Airport, New Delhi-110003

Tel. : 011-24611002 Fax : 011-24658354

November 18, 2013

✓
Shri Manoj Joshi
Joint Secretary (AT&A),
Department of Personnel & Training,
Ministry of Personnel, Public Grievances and Pensions,
North Block,
New Delhi – 110 001.

**Sub: Acceptance of the Offer for the post of Information
Commissioner in the office of the Central Information
Commission (CIC) – reg.**

Sir,

Please refer to your DO Letter No.4/3/2013-IR dated 18.11.2013, I hereby
accept the offer of appointment as Information Commissioner in the Central
Information Commission at New Delhi, with the terms and conditions mentioned
therein.

Des (IR) Thanking you,

18/11

Yours sincerely,

M. A. Khan Yusufi
(M. A. Khan Yusufi)
Chairperson, AAT

VSC RTI)



(248)

AIRPORT APPELLATE TRIBUNAL

Safdarjung Airport, New Delhi-110003

Tel. : 011-24611002 Fax : 011-24658354

November 19, 2013

Sub: Deemed retirement consequent upon appointment as Information Commission in Central Information Commission – reg.

Please refer to your DO Letter No. 4/3/2013-IR dated 18.11.2013 and in continuation of Letter of Acceptance dated 18.11.2013 regarding my selection for appointment as Information Commissioner in Central Information Commission, New Delhi.

2. At present, I am holding the post of Chairperson in Airport Appellate Tribunal under Ministry of Civil Aviation, Rajiv Gandhi Bhavan, New Delhi. I may be deemed to have retired from the service w.e.f. the date of my appointment as Information Commission in Central Information Commission at New Delhi in terms of DoPT OM No.3/15/99-Estt.(PayII) dated 18.11.1999 (copy enclosed).

3. I have already addressed a letter to the Secretary, Ministry of Civil Aviation, Rajiv Gandhi Bhavan, New Delhi – 110 003 and a copy thereof endorsed to you in this regard.

Encl.: As Above

Yours faithfully,


(M. A. Khan Yusufi)
Chairperson

✓ **Shri Manoj Joshi,**
Joint Secretary (AT&A),
Department of Personnel & Training,
Ministry of Personnel, Public Grievances and Pensions,
North Block, New Delhi – 110 001.


19/11

US (RTI)

No. 3/15/99-Estt.(Pay-II) Dated the 18th November, 1999

No.3/15/99-Estt. (Pay II)
GOVERNMENT OF INDIA
MINISTRY OF PERSONNEL PUBLIC GRIEVANCES &
PENSIONS
DEPARTMENT OF PERSONNEL & TRAINING

New Delhi, the 18th November, 1999

OFFICE MEMORANDUM

Subject:- Terms and conditions of appointment of the Chairperson and Members of the Regulatory Authorities - Extension to Statutory Bodies/Tribunals - Policy regarding -

The undersigned is directed to refer to this Department's Office Memorandum No. 3/6/98-Estt. (Pay II) dated the 29th Jan., 1998 read with OM dated 13.2.1998 on the above subject and to say that the above instructions provide inter alia that the Chairperson and Member (s) shall be deemed to have retired from Government Service upon taking up their respective appointment in the Regulatory Authority. The question whether the Central Govt./State Govt. Servants on their appointment should resign or retire from the Service before taking up appointment in the statutory bodies/tribunals has been considered in this Department. It is a recognized fact that the Statutory Bodies are set up by the Government of India either under the provisions of the Constitution or under an Act of Parliament and the service conditions of the Chairperson/Members may be regulated either directly under the statute under which such Bodies are set up or under the rules framed thereunder. These Bodies are mostly autonomous in nature in respect of the fields of their functioning and the orders issued by the Department of Pension and Pensioners' Welfare regarding immediate absorption/deputation apply in such cases. After careful consideration of the matter it has been decided that the Chairperson and Member(s) who, on the date of his appointment to the Statutory Body/Tribunal was in the service of the Central/State Govt. shall be deemed to have retired from such service w.e.f. the date of his respective appointment as such Chairman/Member. It is, however, clarified that this provision will not apply to the cases where the Constitutional provisions or the provision in the statute under which the body is established, is contrary to the above.

2. It is also clarified that the above decision shall apply to the appointments in the existing statutory bodies and tribunals and also to the future authorities and the pay on such appointments will be regulated in accordance with the prevailing orders of Govt. of India applicable to the re-employed pensioners i.e. pay minus pension.

3. The Ministries of Agriculture & Cooperation etc. are requested to bring the above decisions to the notice of all concerned for taking suitable action for amending the relevant rules accordingly.

(HARINDER SINGH)
JOINT SECRETARY TO THE GOVT OF INDIA

To
All Ministries and Departments
As per standard list attached

No. 3/15/99-Estt.(Pay.II) Dated the 18th November.99
Copies also forwarded to:

1. The Comptroller & Auditor General of India and all States under the control.
2. Registrar General, Supreme Court of India.
3. Secretaries to Union Public Service Commission/Election Commission/Lok Sabha Secretariat/Rajya Sabha Secretariat/Cabinet Secretariat/Central Vigilance Commission/ President's Secretariat/Vice President's Secretariat/Prime Minister's Office/Planning Commission.
4. Controller General of Accounts/Controller of Accounts, Ministry of Finance.
5. Department of Personnel & Training (AIS Division)/JCA/Adm. Section.
6. Additional Secretary (Home), Ministry of Home Affairs.
7. Joint Secretary (Union Territories), Ministry of Home Affairs.



(38)

AIRPORT APPELLATE TRIBUNAL

Safdarjung Airport, New Delhi-110003

Tel. : 011-24611002 Fax : 011-24658354

November 19, 2013

Sub: Deemed retirement consequent upon appointment as Information Commission in Central Information Commission – reg.

Please refer to the DO Letter No.4/3/2013-IR dated 18.11.2013 (copy enclosed), addressed by Shri Manoj Joshi, Joint Secretary (AT&A), Department of Personnel & Training, Ministry of Personnel, Public Grievances and Pensions, New Delhi, to me, regarding my selection for appointment as Information Commissioner in Central Information Commission at New Delhi.

2. At present, I am holding the post of Chairperson in Airport Appellate Tribunal (AAT) w.e.f 03.02.2012. As per the terms of appointment, the undersigned is due to demit the office, as such, on 31.12.2013, on attaining the age of 62 years.

3. As per the contents of DoPT OM No.3/15/99-Estt.(PayII) dated 18.11.1999 (copy enclosed), I would be **deemed to have retired** from the service w.e.f. the date of my appointment as Information Commission in Central Information Commission at New Delhi.

Encl.: As Above

Yours faithfully,

(M. A. Khan Yusufi)
Chairperson

Shri K.N. Shrivastava
Secretary,
Ministry of Civil Aviation,
Rajiv Gandhi Bhavan,
New Delhi – 110 003.

Copy to –

✓ **Shri Manoj Joshi,**
Joint Secretary (AT&A),
Department of Personnel & Training,
Ministry of Personnel, Public Grievances and Pensions,

No. 3/15/99-Estt.(Pay-II) Dated the 18th November, 1999

No.3/15/99-Estt. (Pay II)
GOVERNMENT OF INDIA
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES &
PENSIONS
DEPARTMENT OF PERSONNEL & TRAINING

New Delhi, the 18th November, 1999

OFFICE MEMORANDUM

Subject:- Terms and conditions of appointment of the
Chairperson and Members of the Regulatory
Authorities - Extension to Statutory
Bodies/Tribunals - Policy regarding -

The undersigned is directed to refer to this Department's Office Memorandum No. 3/6/98-Estt. (Pay II) dated the 29th Jan., 1998 read with OM dated 13.2.1998 on the above subject and to say that the above instructions provide inter alia that the Chairperson and Member (s) shall be deemed to have retired from Government Service upon taking up their respective appointment in the Regulatory Authority. The question whether the Central Govt./State Govt. Servants on their appointment should resign or retire from the Service before taking up appointment in the statutory bodies/tribunals has been considered in this Department. It is a recognized fact that the Statutory Bodies are set up by the Government of India either under the provisions of the Constitution or under an Act of Parliament and the service conditions of the Chairperson/Members may be regulated either directly under the statute under which such Bodies are set up or under the rules framed thereunder. These Bodies are mostly autonomous in nature in respect of the fields of their functioning and the orders issued by the Department of Pension and Pensioners' Welfare regarding immediate absorption/deputation apply in such cases. After careful consideration of the matter it has been decided that the Chairperson and Member(s) who, on the date of his appointment to the Statutory Body/Tribunal was in the service of the Central/State Govt. shall be deemed to have retired from such service w.e.f. the date of his respective appointment as such Chairman/Member. It is, however, clarified that this provision will not apply to the cases where the Constitutional provisions or the provision in the statute under which the body is established, is contrary to the above.

2. It is also clarified that the above decision shall apply to the appointments in the existing statutory bodies and tribunals and also to the future authorities and the pay on such appointments will be regulated in accordance with the prevailing orders of Govt. of India applicable to the re-employed pensioners i.e. pay minus pension.

3. The Ministries of Agriculture & Cooperation etc. are requested to bring the above decisions to the notice of all concerned for taking suitable action for amending the relevant rules accordingly.

(HARINDER SINGH)
JOINT SECRETARY TO THE GOVT OF INDIA

To
All Ministries and Departments
As per standard list attached

No. 3/15/99-Estt.(Pay II) Dated the 18th November, 99
Copies also forwarded to

1. The Comptroller & Auditor General of India and all States under the control.
2. Registrar General, Supreme Court of India.
3. Secretaries to Union Public Service Commission/Elector Commission/Lok Sabha Secretariat/Rajya Sabha Secretariat/Cabinet Secretariat/Central Vigilance Commission/ President's Secretariat/Vice President's Secretariat/Prime Minister's Office/Planning Commission.
4. Controller General of Accounts/Controller of Accounts, Ministry of Finance.
5. Department of Personnel & Training (AIS Division)/JCA/Admn. Section.
6. Additional Secretary (Home), Ministry of Home Affairs.
7. Joint Secretary (Union Territories), Ministry of Home Affairs.

निदेशक
Director

958226/13/JIA
20/11/13



राष्ट्रपति सचिवालय/352
राष्ट्रपति भवन
नई दिल्ली - 110004

President's Secretariat
Rashtrapati Bhavan
New Delhi - 110004

No.F.52-CA(I)/2013

19 November 2013

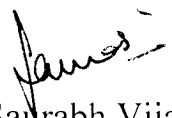
Dear Shri Joshi,

This has reference to your d.o. letter No.4/3/2013-IR, dated 18 November, 2013 to Additional Secretary to the President regarding administration of oath to the newly appointed Information Commissioners.

I write to convey that the President has desired that the newly appointed Information Commissioners may make and subscribe oath or affirmation before the Chief Information Commissioner as provided under Section 13(3) of the Right to Information Act, 2005.

With warm regards,

Yours sincerely,


(Saurabh Vijay)

US(RTI)
my
20/11/13

Director
Shri Manoj Joshi 20/11
Joint Secretary (AT&A)
Department of Personnel and Training
Ministry of Personnel, Public Grievances and Pensions
North Block
New Delhi.

1252

Subject resignation and relief letters
From Sridhar Acharyulu <professorsridhar@gmail.com>
Date Wednesday, November 20, 2013 1:44 pm
To "R.K.Girdhar" <usrti-dopt@nic.in>
Cc "vc@nalsar.ac.in" <vc@nalsar.ac.in> , registrar nalsar <registrar@nalsar.ac.in> , nagalakshmi <admissions@nalsar.ac.in>

Dear Mr Giridhar

pl take the copies of my resignation and relief letters, attached herewith.

--

With regards,

Yours sincerely,

Dr.Madabhushi Sridhar, Professor
NALSAR University of Law, Justice City, Shameerpet,
R.R.District, Hyderabad - 500 078.
Tel:+91-40-23498206 (O), Fax:+91-8418-245174, Cell: 09490412108
<http://www.nalsar.ac.in>

Coordinator - Centre for Media Law & Public Policy, Centre for Criminal Justice Administration and Human Rights &
Centre for Tribal and Land Rights at NALSAR

Co-Investigator – Global Internet Governance & Advocacy (GIGA) Project.

See www.indiacurrentaffairs.org, www.thehoot.org

Visit www.liiofindia.org – One stop free legal portal for Indian Laws & Treaties.

From:
M Sridhar Acharyulu
Professor of Law,
NALSAR University of Law

Dated 20th November 2013

To

The Vice Chancellor
NALSAR University of Law
Hyderabad.

Sir,

Sub: Appointment as Information Commissioner, at the Central Information Commission, request for acceptance of Resignation and waiving of notice period, Regd.

Ref: D O No 4/3/2013-IR from Ministry of Personnel, Public Grievances and Pensions, Government of India, New Delhi, Dated 18.11.2013 addressed to me.

....

I am happy to inform you that I got selected for appointment as Information Commissioner in the Central Information Commission. I received offer of appointment vide letter referred above.

I have communicated my acceptance. As the term of office is five years, and as per Right to Information Act, 2005, the Information Commissioner shall not pursue any profession.

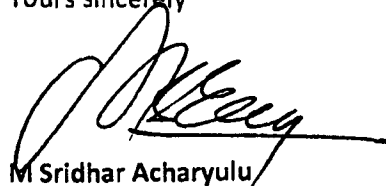
Hence, I am tendering my resignation herewith. I request you to accept to bring it to effect from the today, the date of resignation.

I have been the member of faculty ever since the first recruitment happened in 2000 and served the institution in different capacities for the last 14 years. My association with the University is long and very thick. Hence, I request you to consider my case as an extra-ordinary, especially in view of the significant assignment that I got, and waive the condition of giving notice.

I hope you would consider my request positively.

I thank you in advance.

Yours sincerely



M Sridhar Acharyulu

NALSAR University of Law, Hyderabad

Post Box No. 1, NISA Hakimpet, 'Justice City', Shameerpet,
Ranga Reddy District, Hyderabad - 500 078. A.P., India.
Tel. Off : +91-40-23498104 / 115, Cell : +91-98480 16212
Fax: +91-8418- 245174 / 245161
E-mail: registrar@nalsar.ac.in, vijenderkumar@yahoo.com
Website : www.nalsar.ac.in

Prof. (Dr.) Vijender Kumar
Registrar

Admn. / Faculty / 941 / 2013

Dt : November 20, 2013

OFFICE ORDER

Sub : Relieving of Prof. M. Sridhar Acharyulu as Professor – Reg.

Ref : 1) Letter from Prof. M. Sridhar Acharyulu
dated November 20, 2013 (by email).

2) Approval of the Vice-Chancellor dated November 20, 2013
(by email).

In exercise of powers vested in him under Section 17(2)(iv) of the NALSAR University Act, 1998, the Vice-Chancellor has accepted your resignation and you are hereby relieved of your duties as Professor w.e.f. November 20, 2013 (A.N.)

With regard to your request for the waiver of notice period, the Vice-Chancellor in exercise of powers vested in him under Section 17(2)(vii) of the NALSAR University Act, 1998 has waived the requirement of three months notice subject to confirmation by the Executive Council.


REGISTRAR

To
Prof. M. Sridhar Acharyulu
Professor of Law
NALSAR University of Law
Hyderabad.

Copy to

- 1) Mr. Manoj Joshi, Joint Secretary (AT&A), Government of India, Department of Personnel & Training, Ministry of Personnel, Public Grievances and Pensions, North Block, New Delhi 110 001. Fax : 011 – 2309 4001.
- 2) Mrs. Deepak Sandhu, Chief Information Commissioner, Central Information Commission, August Kranti Bhavan, Bhikaji Cama Place, New Delhi 110 066. Fax : 011 – 26186536.
- 3) Convenor, Academic & Examination Committee, NALSAR University of Law
- 4) Prof. V.C. Vivekanandan, Director, GIGA, NALSAR University of Law
- 5) Accounts Officer, NALSAR University of Law
- 6) Assistant Librarian, NALSAR University of Law
- 7) P.S. to Vice-Chancellor, NALSAR University of Law

206

No.F.4/3/2013-IR
Government of India
Ministry of Personnel, PG & Pensions
Department of Personnel & Training.
IR Section

North Block, New Delhi
Dated the 21st November, 2013

To

The Secretary
Central Information Commission
August Kranti Bhavan
Bhikaji Cama Place
New Delhi.

Ref No. 26106287

Subject: Appointment of five more Information Commissioners in the Central Information Commission.

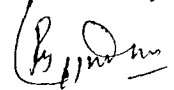
Sir,

In pursuance of sub-section 3 of Section 12 of the RTI Act, 2005, H.E. the President of India has appointed the following five persons for the post of Information Commissioners in the Central Information Commission:

- (i) Shri Yashovardhan Azad
- (ii) Shri Sharat Sabharwal
- (iii) Ms. Manjula Prasher
- (iv) Shri M. A. Khan Yusufi
- (v) Shri Madabhushi Sridhar Acharyulu

2. They have accepted the offer of appointment as Information Commissioners in the Central Information Commission. The Chief Information Commissioner is requested to administer the Oath of Office to them as per the First Schedule of the RTI Act, 2005, as directed by the President of India.

Yours faithfully,



(R.K. Girdhar)

Under Secretary to the Govt. of India

Tel: 2309 2759

Telefax: 2309 3022

vetted
Sanjay Singh
22/11/13
(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

exercise of the powers conferred by New Delhi, the

S.O..... (E). – In ~~purview~~ *exercise of* sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President is pleased to appoint Shri Yashovardhan Azad as the Information Commissioner in the Central Information Commission with effect from the 22nd November, 2013.

on the recommendation of the committee,

day
[F.No. 4/3/2013-IR]

(Manoj Joshi)
Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Sh. Yashovardhan Azad, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
7. Sr. PPS to Secretary (P)/AS&FA (Home)/PS to JS (E)/JS (AT&A).
8. PPS to E.O., DoPT, North Block, New Delhi.
9. Pay & Accounts Office, CAR, Dalhousie Road, New Delhi.
10. Guard file.
11. 20 spare copies.

658
OUT TODAY

No. 4/3/2013-IR (Pt.)
Government of India
Ministry of Personnel, PG and Pensions
Department of Personnel and Training

North Block, New Delhi
Dated November 25, 2013
26

To

The Manager,
Govt. of India Press,
Mayapuri,
New Delhi.

Sir,

I am directed to forward herewith five notifications, in English and Hindi, to be published in Part-II, Section 3, sub-section (ii) of the Gazette of India, Extraordinary. Soft copy of these notifications is also enclosed. You are also requested to furnish 20 copies of the Gazette Notification for official use of this Department.

Yours faithfully,



(R.K. Girdhar)

Under Secretary to the Govt. of India
2309 2759

Encl: As above.

Received


26/11/13

26/11/2013

(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O..... (E). – In exercise of the powers conferred by sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Yashovardhan Azad as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Sh. Yashovardhan Azad, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
7. Sr. PPS to Secretary (P)/AS&FA (Home)/PS to JS (E)/JS (AT&A).
8. PPS to E.O., DoPT, North Block, New Delhi.
9. Pay & Accounts Office, CAR, Dalhousie Road, New Delhi.
10. Guard file.
11. 20 spare copies.

[भारत का राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (ii) में प्रकाशनार्थ]

भारत सरकार
कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, तारीख 26 नवंबर, 2013

का.आ. _____ (अ).-- राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री यशोवर्धन आजाद को तारीख 22 नवंबर, 2013 से, केंद्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा.सं.4/3/2013-आईआर]

मनोज जोशी

(मनोज जोशी)

संयुक्त सचिव, भारत सरकार

(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O..... (E). – In exercise of the powers conferred by sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Sharat Sabharwal as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Sh. Sharat Sabharwal, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
7. Sr. PPS to Secretary (P)/AS&FA (Home)/PS to JS (E)/JS (AT&A).
8. PPS to E.O., DoPT, North Block, New Delhi.
9. Pay & Accounts Office, CAR, Dalhousie Road, New Delhi.
10. Guard file.
11. 20 spare copies.

362

[भारत का राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (ii) में प्रकाशनार्थ]

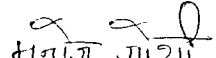
भारत सरकार
कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, तारीख 26 नवम्बर, 2013

का.आ. ____ (अ).-- राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री शरत सभरवाल को तारीख 22 नवंबर, 2013 से, केंद्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा.सं.4/3/2013-आईआर]


मनोज जोशी

(मनोज जोशी)

संयुक्त सचिव, भारत सरकार

26th

(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O..... (E). – In exercise of the powers conferred by sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Ms. Manjula Prasher as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Ms. Manjula Prasher, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
7. Sr. PPS to Secretary (P)/AS&FA (Home)/PS to JS (E)/JS (AT&A).
8. PPS to E.O., DoPT, North Block, New Delhi.
9. Pay & Accounts Office, CAR, Dalhousie Road, New Delhi.
10. Guard file.
11. 20 spare copies.

1264
[भारत का राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (ii) में प्रकाशनार्थ]

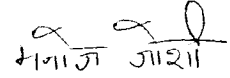
भारत सरकार
कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, तारीख 26 नवंबर, 2013

का.आ. ____ (अ).-- राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, सुश्री मंजुला प्राशर को तारीख 22 नवंबर, 2013 से, केंद्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा.सं.4/3/2013-आईआर]


मनोज जोशी

(मनोज जोशी)
संयुक्त सचिव, भारत सरकार

(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O..... (E). – In exercise of the powers conferred by sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri M.A. Khan Yusufi as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Sh. M.A. Khan Yusufi, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
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11. 20 spare copies.

[भारत का राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (ii) में प्रकाशनार्थ]

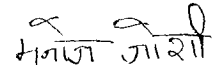
भारत सरकार
कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, तारीख 26 नवंबर, 2013

का.आ.____(अ).— राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री एम.ए.खां यूसुफी को तारीख 22 नवंबर, 2013 से, केंद्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा.सं.4/3/2013-आईआर]



(मनोज जोशी)

संयुक्त सचिव, भारत सरकार

(TO BE PUBLISHED IN PART II, SECTION 3, SUB-SECTION (ii) OF THE GAZETTE OF INDIA, EXTRA ORDINARY)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O..... (E). – In exercise of the powers conferred by sub-section (3) of section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Madabhushi Sridhar Acharyulu as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Copy to:

1. Central Information Commission, 2nd Floor, 'B'. Wing, August Kranti Bhavan, Bhikaji Cama Place, New Delhi-110066.
2. Smt. Deepak Sandhu, Central Chief Information Commissioner, CIC, New Delhi.
3. Sh. Madabhushi Sridhar Acharyulu, Information Commissioner, CIC, New Delhi.
4. President's Secretariat (Sh. Thomas Mathew, Add. Secretary), Rashtrapati Bhavan, New Delhi.
5. PS to Hon'ble Prime Minister, South Block, New Delhi.
6. Cabinet Secretariat, Rashtrapati Bhavan, New Delhi.
7. Sr. PPS to Secretary (P)/AS&FA (Home)/PS to JS (E)/JS (AT&A).
8. PPS to E.O., DoPT, North Block, New Delhi.
9. Pay & Accounts Office, CAR, Dalhousie Road, New Delhi.
10. Guard file.
11. 20 spare copies.

1268

[भारत का राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (ii) में प्रकाशनार्थ]

भारत सरकार
कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, तारीख 26 नवंबर, 2013

का.आ. ____ (अ).— राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री मदाभूषी श्रीधर आचार्युलु को तारीख 22 नवंबर, 2013 से, केंद्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा.सं.4/3/2013-आईआर]

मनोज जोशी

(मनोज जोशी)

संयुक्त सचिव, भारत सरकार

केन्द्रीय सूचना आयोग

Central Information Commission

2 तल, विंग 'ब' / 2nd Floor, 'B' Wing

अगस्त क्रान्ति भवन / August Kranti Bhavan

भीकाजी कामा प्लेस/ Bhikaji Cama Place

नई दिल्ली - 110066 / New Delhi - 110066

PRESS RELEASE

Dated: 22nd November, 2013

Shri Yashovardhan Azad, Shri Sharat Sabharwal, Smt Manjula Prasher, Shri M A Khan Yusufi and Shri Madabhushanam Sridhar Acharyulu were administered the oath of Office of the Information Commissioners, Central Information Commission (CIC) by the Chief Information Commissioner Smt Deepak Sandhu.

With their induction, the total number of Information Commissioners including the Chief Information Commissioner has gone up to 10 in the Central Information Commission.

Shri Yashovardhan Azad, a former IPS Officer, before joining the Office of Information Commissioner in Central Information Commission, was holding the post of Secretary (Security) in Cabinet Secretariat, Government of India. He holds Masters Degree in Economics from the Delhi School of Economics. His area of eminence includes Administration and Governance.

Before joining the Office of Information Commissioner in Central Information Commission, Shri Sharat Sabharwal a career diplomat, retired as High Commissioner of India in Pakistan upon completing his extended tenure. He holds Masters Degree in Political Science. His area of eminence includes Diplomacy, Administration and Governance.

Before joining the Office of Information Commissioner in Central Information Commission, Smt Manjula Parasher a former Postal Service Officer had retired as Secretary to Government of India from the Department of Posts, M/o Information and Technology on 31st January 2013. She holds Masters Degree in History from Punjab University. Her area of eminence includes Administration and Governance of Postal Management.

(320

Shri MA Khan Yusufi a former ILS Officer before joining the Office of Information Commissioner in Central Information Commission was holding the post of Chairperson in Airport Appellate Tribunal, M/o Civil Aviation, Government of India. He holds Bachelor's degree from Aligarh Muslim University. His area of eminence is Law.

Before joining the Office of Information Commissioner in Central Information Commission, Shri Madbhushanam Sridhar Acharyulu was working as Professor at NALSAR, University of Law, Hyderabad since 2005. He holds Doctorate degree in Law. His area of eminence is Media Law.

27/11

From sandeep jain <sjain.iofs@gmail.com>

Sent Tuesday, November 19, 2013 7:14 pm

To usrti-dopt <usrti-dopt@nic.in>

Subject Fwd: Regarding offer of appointment as Information Commissioner.

Attachments acceptance letter.doc

Regards,
Sandeep Jain,
Director/DoPT
23092755

----- Forwarded message -----

From: **jsata** <jsata@nic.in>

Date: Tue, Nov 19, 2013 at 4:31 PM

Subject: Fwd: Regarding offer of appointment as Information Commissioner.

To: Manoj Joshi <manojoshi@hotmail.com>, Sandeep Jain <sjain.iofs@gmail.com>

----- Forwarded message -----

From: Manjula Prasher <manjulaprasher@gmail.com>

To: jsata@nic.in

Cc:

Date: Mon, 18 Nov 2013 17:17:06 +0530

Subject: Regarding offer of appointment as Information Commissioner.

Dear Manoj,

Thank you for your letter on the subject. Please find attached my acceptance letter for appointment as Information Commissioner, Central Information Commission.

With best wishes,
Sincerely,

Manjula Prasher.

27/11/13
S. S.

From
Manjula Prasher

November 18, 2013.

372

Reference – Your letter regarding offer of appointment as Information Commissioner.

I am thankful for your d.o. letter number 4/3/2013-IR of November 18, 2013. I accept the offer of appointment as Information Commissioner in the Central Information Commission.

I confirm that I do not hold any office at present and that I am not connected with any political party, business or profession.

Sh. Manoj Joshi,
Joint Secretary (AT and A),
Deptt. of Personnel and Training,
Ministry of Personnel,
Public Grievances and Pensions,
Govt. of India,
New Delhi – 110001.

Sincerely,

(Manjula Prasher)

Former Secretary Deptt of Posts,
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NEW DELHI, TUESDAY, NOVEMBER 26, 2013/AGRAHAYANA 5, 1935

कार्मिक, लोक शिकायत और पेंशन मंत्रालय

(कार्मिक और प्रशिक्षण विभाग)

अधिसूचना

नई दिल्ली, 26 नवम्बर, 2013

का.आ. 3481(अ).—राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उप-धारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री यशोवर्धन आजाद को तारीख 22 नवम्बर, 2013 से, केन्द्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा. सं. 4/3/2013-आई आर]

मनोज जोशी, संयुक्त सचिव

MINISTRY OF PERSONNEL, PUBLIC
GRIEVANCES AND PENSIONS

(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 26th November, 2013

S.O. 3481(E).—In exercise of the powers conferred by sub-section (3) of Section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Yashovardhan Azad as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

MANOJ JOSHI, Jt. Secy.

अधिसूचना

नई दिल्ली, 26 नवम्बर, 2013

का.आ. 3482(अ).—राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उप-धारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री शरत सभरवाल को तारीख 22 नवम्बर, 2013 से, केन्द्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा. सं. 4/3/2013-आई आर]

मनोज जोशी, संयुक्त सचिव

NOTIFICATION

New Delhi, the 26th November, 2013

S.O. 3482(E).—In exercise of the powers conferred by sub-section (3) of Section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Sharat Sabharwal as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F.No. 4/3/2013-IR]

MANOJ JOSHI, Jt. Secy.

अधिसूचना

नई दिल्ली, 26 नवम्बर, 2013

का.आ. 3483(अ).—राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उप-धारा (3)

द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, सुश्री मंजुला प्राशर को तारीख 22 नवम्बर, 2013 से, केन्द्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा. सं. 4/3/2013-आईआर]

मनोज, जोशी, संयुक्त सचिव

NOTIFICATION

New Delhi, the 26th November, 2013

S.O. 3483(E).—In exercise of the powers conferred by sub-section (3) of Section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Ms. Manjula Prasher as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F. No. 4/3/2013-IR]

MANOJ JOSHI, Jt. Secy.

अधिसूचना

नई दिल्ली, 26 नवम्बर, 2013

का.आ. 3484(अ).—राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उप-धारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री एम.ए.खां यूसुफी को तारीख, 22 नवम्बर, 2013 से, केन्द्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा. सं. 4/3/2013-आई आर]

मनोज जोशी, संयुक्त सचिव

NOTIFICATION

New Delhi, the 26th November, 2013

S.O. 3484(E).—In exercise of the Powers conferred by sub-section (3) of Section 12 of the Right to Information

Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri M.A. Khan Yusufi as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F. No. 4/3/2013-IR]

MANOJ JOSHI, Jt. Secy.

अधिसूचना

नई दिल्ली, 26 नवम्बर, 2013

का.आ. 3485(अ).—राष्ट्रपति, सूचना का अधिकार अधिनियम, 2005 (2005 का 22) की धारा 12 की उप-धारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, समिति की सिफारिश पर, श्री मदाभूशी श्रीधर आचार्युलु को तारीख 22 नवम्बर, 2013 से, केन्द्रीय सूचना आयोग में सूचना आयुक्त के रूप में नियुक्त करते हैं।

[फा. सं. 4/3/2013-आई आर]

मनोज जोशी, संयुक्त सचिव

NOTIFICATION

New Delhi, the 26th November, 2013

S.O. 3485(E).—In exercise of the powers conferred by sub-section (3) of Section 12 of the Right to Information Act, 2005 (22 of 2005), the President, on the recommendation of the Committee, is pleased to appoint Shri Madabhushi Sridhar Acharyulu as the Information Commissioner in the Central Information Commission with effect from the 22nd day of November, 2013.

[F. No. 4/3/2013-IR]

MANOJ JOSHI, Jt. Secy.

